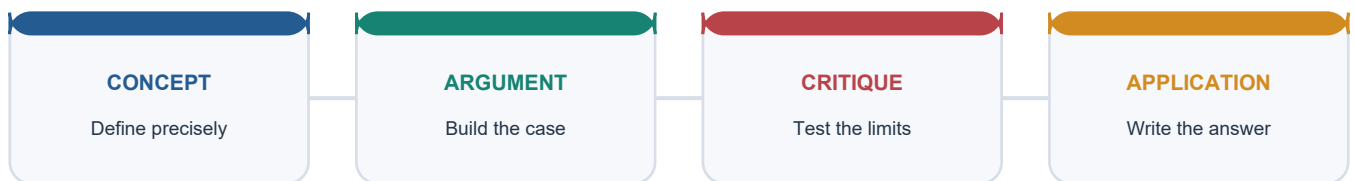


SOLVED PRACTICE WORKBOOK

Crime and Punishment - Solved Practice Workbook

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

CONTENTS / WORKBOOK INDEX

Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

Crime and Punishment - Solved Practice Workbook	3
What this workbook contains	4
How to use it	5
BASIC MCQS / REMEDIATION	5
32 original MCQs - 24 core diagnostics and 8 remedial error-targeting drills	5
Remedial drills - eight errors that cost marks every year	19
PYQS AND ANSWER PRACTICE	23
Practice status and source discipline - read once, applies to every solution below	23
ORIGINAL MAINS PRACTICE WITH MODEL SOLUTIONS	39

Crime and Punishment - Solved Practice Workbook

Standalone workbook. It reproduces the complete practice apparatus of the Crime and Punishment learning package and can be worked without the teaching sessions. Syllabus, verbatim: *Crime and Punishment : Corruption, Mass Violence, Genocide, Capital Punishment.* - UPSC Philosophy Paper II, Section A, item 7. One paired concept and four named applications are printed, and only those. Crime and the general justification of punishment are the indispensable prerequisite, because none of the four applications can be assessed without a prior account of what makes conduct a public wrong, who may be held answerable for it, and on what terms coercive punishment is permissible. Kant, Hegel, Bentham, Beccaria, H. L. A. Hart, Joel Feinberg, R. A. Duff, Michel Foucault, John Braithwaite, Hannah Arendt and Raphael Lemkin appear because each executes a distinction the owned previous-year parts require. **Gandhi and Rawls are not independently demanded by the 2018-2025 corpus and are not imported as decoration.** General rights, duties, accountability and the legitimacy of state coercion belong to **Individual and State**; justice, equality, liberty and dignity as ideals to **Social and Political Ideals**; regime design, propaganda and accountability to **Forms of Government**; gender doctrine to **Gender Discrimination**; caste doctrine to **Caste Discrimination: Gandhi and Ambedkar**; moral evil and theodicy to **Philosophy of Religion** - all routed rather than developed. Detailed criminal procedure, prison administration, crime statistics and case-law survey lie outside this owner entirely.

Evidence discipline: FACT: doctrine on which the standard sources converge · ANALYSIS: analytical reconstruction offered for exam use · CAUTION: a live scholarly dispute or a contested empirical claim. Model answers are independent learner practice and are never official UPSC keys; UPSC publishes no descriptive model answer for Philosophy Paper II.

Terminology and citation rule: the English concept leads and the technical term follows immediately in parentheses - *conduct prohibited and punishable by a valid criminal law (legal crime)*, *conduct violating a justified ethical norm (moral wrong)*, *the external act or legally relevant omission linking liability to conduct rather than thought (actus reus)*, *the fault element grading answerability through intention, knowledge, recklessness or negligence (mens rea)*, *the claim that the act was permissible in the circumstances (justification)*, *the concession that the act was wrong with blame denied or reduced for impaired control, knowledge or competence (excuse)*, *responsibility as reasons-responsive control without metaphysical exemption from causation (compatibilism)*, *punishment because culpable wrongdoing merits a proportionate response (retribution)*, *punishment justified by expected reduction of future offending (deterrence)*, *restraint of a dangerous offender to protect others (incapacitation)*, *transformation of the capacities and conditions of lawful agency (reform)*, *the return of value or repair of loss (restitution)*, *the participatory process in which victim, offender and community address harms, needs and obligations (restorative justice)*, *the authoritative public condemnation that distinguishes punishment from a penalty (expressive function)*, *an address to the offender as a responsible member of the community, with hard treatment as secular penance (communicative punishment)*, *the polity's authority to call this offender to account (standing to punish)*, *the ranking of penalties by seriousness (ordinal proportionality)*, *how severe the whole scale may be (cardinal proportionality)*, *why the institution should exist at all (general justifying aim)*, *whom we may punish and on what condition (distribution or liability)*, *how much punishment is permissible (amount or severity)*, *the misuse of entrusted public or institutional power through partial, concealed or improperly exchanged advantage (corruption)*, *norms assigning special weight to family, caste, friendship or patronage (particularistic standards)*, *norms requiring impartial application of public criteria (universalistic standards)*, *avoidable deprivation, danger or exclusion produced by institutional arrangements rather than by an identifiable assault (structural harm)*, *large-scale violence against populations through organised coercion, collective mobilisation or cascading participation (mass violence)*, *extraordinary wrongdoing performed through cliché, careerism and failure of judgment (the banality of evil)*, *specified acts with intent to destroy, in whole or in part, a national, ethnical, racial or religious group, as such (genocide)*, *permanent asymmetrical visibility internalised because it cannot be verified (panopticism)*, and *the state's intentional execution of a convicted offender (capital punishment)*. Works are cited by author and title only - **Kant, The Metaphysics of Morals**; **Hegel, Philosophy of Right**; **Bentham, An Introduction to the Principles of Morals and Legislation**; **Beccaria, On Crimes and Punishments**; **Hart's** separation of the general justifying aim from distribution and severity; **Feinberg, "The Expressive Function of Punishment"**; **Duff, Punishment, Communication, and Community**; **Foucault, Discipline and Punish (1975 French; 1977 English)**; **Braithwaite, Crime, Shame and Reintegration**; **Arendt, Eichmann in Jerusalem and The Origins of Totalitarianism**; and **Lemkin, Axis Rule in Occupied Europe (1944)**. No page, chapter, edition or verbatim wording is asserted for any of them, and no author is quoted anywhere in this workbook. Six dated facts appear, each classified before use - the **Genocide Convention (1948)**, in force **1951**; **Lemkin's Axis Rule in Occupied Europe (1944)**; the **Prevention of Corruption Act, 1988**, amended **2018**; the **Lokpal and Lokayuktas Act, 2013**; **Bachan Singh v. State of Punjab (1980)**; and the **Law Commission of India, Report No. 262, The Death Penalty (2015)**. **WRONG:** No country, community, party, government, movement, leader, technology, programme or historical episode is named anywhere as an instance of mass violence, genocide, communal violence, pogrom, panopticism or surveillance, and no statute, judgment or report is used as evidence for or against a philosophical thesis.

What this workbook contains

Component	Count
Original diagnostic MCQs - 24 core plus 8 remedial drills	32
Question-specific option explanations	128
Unique examiner traps	32
Directly owned verified PYQs solved in full, 2018-2025	12
Original solved Mains models - two each at 10, 15 and 20 marks	6

How to use it

1. Attempt the twenty-four core MCQs without notes, then read every option explanation, including those for the options you rejected. The key sequence is **unpatterned** - each answer was fixed independently - so no cycle can be guessed, and option lengths are matched so that the answer cannot be spotted by shape.
2. Work the eight remedial drills only after the core set. They target the systemic-or-ethical stem answered with an unexplained "both", disclosure confused with incidence on the regime stem, the mass-violence analogy asserted instead of tested, the five kinds of collective responsibility conflated, Arendt's banality thesis used as mitigation, the claim that the 1948 Convention adopted Lemkin's conception in full, the misclassification of the Indian statutes, judgment and advisory report, and the importation of another owner's material.
3. Attempt each previous-year part under time before reading its solution. **Decide the sub-theme from the stem first:** five owned parts concern corruption, four capital punishment, two punishment theory and one proportionality. **ANALYSIS:** Genocide carries none in the held cycle and remains a full syllabus obligation.
4. Write the six original models in full. Two are 10-mark, two 15-mark and two 20-mark, and each sits inside the declared word band - **10 marks about 150 to 220 words, 15 marks about 250 to 330, 20 marks about 330 to 400.**
5. Check every answer against the seventeen traps: equating moral wrong with legal crime; equating retribution with revenge; asserting or denying deterrent effect without evidence; reducing reform to leniency; calling every massacre genocide; inferring collective guilt from membership; answering corruption as only character or only structure; treating the 2015 Law Commission report as enacted law; treating *Bachan Singh* as legislation; inferring capital punishment from the fact that the right to life has limits; punishing thought alone; merging justification with excuse; inferring responsibility from causal contribution alone; treating determinism as acquittal or metaphysical freedom as a courtroom fact; merging restitution with restorative justice; treating denunciation as a complete justification of hard treatment; and importing Gandhi or Rawls without a stem-specific reason.

BASIC MCQS / REMEDIATION

32 original MCQs - 24 core diagnostics and 8 remedial error-targeting drills

Answer placement: each correct option was fixed **independently**, so the key sequence is unpatterned rather than rotated and no cycle such as ABCD - or its reverse - can be used to guess. Options are matched for length, specificity, grammar and visible formatting so that the answer cannot be spotted by shape alone. Every question carries four question-specific option explanations and one unique examiner trap.

Coverage: the twenty-four core questions run across the whole printed clause - *Crime and Punishment* : *Corruption, Mass Violence, Genocide, Capital Punishment* - together with the three justifying questions and the mixed or limiting theory, the two-directional non-identity of legal crime and moral wrong, the five criminalisation filters, the four-element attribution ladder and the justification/excuse contrast, the seven conditions of responsible punishment and the responsibility/causation hinge, the three positions on freedom and the compatibilist working standard, the six theory families and the three justificatory logics, limiting against maximising retributivism and the four-axis contrast with revenge, the four deterrent presuppositions with Beccaria's calibration point and the Q2/Q3 failures, incapacitation and the four bounding conditions on reform, ordinal against cardinal proportionality and the five-factor juvenile grid, Feinberg's expressive differentia, Duff's communicative account and the standing argument, Foucault's genealogy with its compulsory caveat, restorative justice with Braithwaite's two kinds of shaming, corruption as the misuse of entrusted power with its five independent wrongs, and the particularism-universalism tension with its role-boundary remedy. The eight remedial drills attack the errors that cost marks every year on this clause: answering the systemic-or-ethical stem with an unexplained "both", confusing disclosure with incidence on the regime stem, asserting the mass-violence analogy instead of testing it, conflating the five kinds of collective responsibility, using Arendt's banality thesis as mitigation, asserting that the 1948 Convention adopted Lemkin's conception in full, misclassifying the Indian statutes, judgment and advisory report, and claiming parts that belong to another owner.

MCQ 1. Locating an objection rather than reciting it

A script argues that deterrence must be rejected because it would permit the conviction of a person known to be innocent whenever the social benefit was large enough. On the account developed in this package, what has the script got right, and what has it left out?

- A. The objection is sound but misdirected, because deterrence is a theory about the general aim of the institution and objections to particular sentences cannot touch a claim pitched at that level of generality.
- B. The objection is correctly stated but unlocated: it defeats deterrence at the question of liability while leaving untouched its plausible answer to the question of why the institution should exist.
- C. The objection is unsound because rule-utilitarian constraints of legality and proof remove the possibility entirely, so no version of the deterrent theory is exposed to it at any point.
- D. The objection is sound and complete, because a theory that fails at any one of the three justifying questions has been refuted and no further location of the failure is required.

Answer: B.

Option explanations:

- **A:** Incorrect: deterrence is offered as an answer to all three questions unless a side-constraint is added, so it is exposed at liability precisely because it does not confine itself to the general aim.
- **B:** Correct: the objection lands at Q2, and saying so preserves the theory's plausible Q1 answer and shows exactly which repair - a desert side-constraint - the mixed theory supplies.
- **C:** Incorrect: the rule-utilitarian reply makes the protection contingent on the social costs of discovery rather than removing the exposure, which is why the counter-reply about secret injustice retains its force.
- **D:** Incorrect: failure at one question is a reason to constrain a theory at that question, not to discard its answer to the others, and the two-level theory is built on exactly that observation.

Examiner trap 1: Reciting the punishing-the-innocent objection without locating it at the liability question makes it look like a general complaint about consequentialism, and an unlocated objection cannot show which repair the mixed theory is offering.

MCQ 2. The non-identity of legal crime and moral wrong

A candidate writes that crime and moral wrong come apart because unjust laws sometimes criminalise innocent conduct. What has been omitted, and why does the omission matter for this clause in particular?

- A. The observation that legal validity is established by enactment rather than by merit, which is the positivist thesis the candidate has inadvertently attacked instead of using.
- B. The observation that sociological accounts explain deviance through power relations, which is needed because the criminal law's categories are socially produced rather than discovered.
- C. The observation that criminalisation must satisfy a proportionality filter, which is needed because criminal sanction is the heaviest instrument a state possesses short of war.
- D. The observation that grave moral wrongs may escape legal definition, which is needed because much of the harm involved in corruption and structural deprivation lies precisely there.

Answer: D.

Option explanations:

- **A:** Incorrect: the candidate's statement is consistent with the positivist thesis rather than an attack on it, and adding that observation would not supply the missing second direction.
- **B:** Incorrect: the sociological account is a third perspective on what "crime" means and does not by itself state the direction in which grave wrongs escape legal definition.
- **C:** Incorrect: proportionality constrains the criminalisation decision but says nothing about wrongs that were never criminalised, which is the omitted direction.
- **D:** Correct: the non-identity runs both ways, and the undefined-wrong direction is the one that the corruption and structural-harm material in this clause actually requires.

Examiner trap 2: Stating only the unjust-law direction of the non-identity looks complete and is not, and it removes in advance the resource an answer needs to explain why diffuse institutional harm can be a grave wrong without being a defined offence.

MCQ 3. Which criminalisation filter corruption strains

On the account taught here, which filter does corruption pass with most difficulty on a purely harm-based reading, and what supplies the answer?

- A. The public-wrong filter, and the answer is that corruption repudiates a norm constitutive of entrusted office, so the community's standing to condemn does not depend on a measurable loss.
- B. The culpability filter, and the answer is that officials act with knowledge and intention, so the fault element is satisfied even where the resulting damage is impossible to quantify.
- C. The legality filter, and the answer is that anti-corruption offences are defined in advance by statute, so fair notice is satisfied and the conduct is knowable as prohibited.
- D. The rights filter, and the answer is that citizens hold a right to impartial administration, so the conduct violates a right even where no individual can show a set-back to interests.

Answer: A.

Option explanations:

- **A:** Correct: the harm filter is weakest for corruption because victims are diffuse, and the public-wrong filter carries the case by grounding the offence in the betrayal of entrusted office rather than in quantified damage.
- **B:** Incorrect: culpability is generally easy to establish for corrupt acts and is therefore not the filter under strain; the difficulty is about the nature of the wrong rather than the fault element.
- **C:** Incorrect: legality is satisfied wherever offences are defined in advance, so it is not the point of difficulty, and satisfying it would not show that the conduct is the community's business.
- **D:** Incorrect: this restates the conclusion in the language of rights without explaining why the community may condemn, and the rights filter also asks whether prohibiting the conduct would violate a right.

Examiner trap 3: Defending the criminalisation of corruption by pointing to enacted statutes answers the legality filter and not the public-wrong filter, which leaves the philosophically interesting question - why this is the community's business at all - entirely unaddressed.

MCQ 4. Justification and excuse deny different things

Why does the difference between a justification and an excuse matter for persons other than the defendant?

- A. Because a justification is decided by the court while an excuse is assessed by the sentencing authority, so the two answers are evaluated at different stages of the same proceedings.
- B. Because a justification removes the fault element while an excuse removes the external act, so the two answers defeat different elements of the four-step attribution ladder.
- C. Because those who assist a justified act may share its justification, whereas an excused wrong remains a wrong, so resistance to it remains permissible for those affected by it.
- D. Because a justification requires proportionate force while an excuse requires impaired capacity, so the two answers rest on evidence of quite different kinds and reliability.

Answer: C.

Option explanations:

- **A:** Incorrect: this describes a procedural allocation rather than the conceptual difference, and it does not explain any consequence for third parties.
- **B:** Incorrect: an excuse does not remove the external act; it concedes the wrongful act and denies or reduces the actor's answerability for it.
- **C:** Correct: the third-party consequence is the sharpest illustration that the two answers deny different things - wrongfulness in one case, answerability in the other.

- **D:** Incorrect: this is broadly true of the standard examples but concerns evidence rather than the structure of the two defences, and again yields no third-party consequence.

Examiner trap 4: Treating self-defence and duress as two versions of the same answer merges justification with excuse, and the merger silently removes the third-party consequence that shows why the distinction was worth drawing.

MCQ 5. The hinge between responsibility and causation

What does the claim that responsibility is not identical with causal contribution establish, and in which direction does it do its most distinctive work in this clause?

- A. It establishes that attribution runs in two directions, and its most distinctive work is done where an office-holder is answerable for a culpable omission that caused nothing directly.
- B. It establishes that causation is irrelevant to liability, and its most distinctive work is done where a participant's contribution to a harm cannot be traced through the chain of events.
- C. It establishes that intention is the only fault element, and its most distinctive work is done where a participant acted deliberately but contributed only a fragment of the eventual harm.
- D. It establishes that liability requires proof of a duty, and its most distinctive work is done where a bystander watched a harm occur without any prior relationship to the victim.

Answer: A.

Option explanations:

- **A:** Correct: the hinge runs both ways - contribution without control, and culpable omission by a duty-bearer - and the omission direction is what reaches enablers, supervisors and office-holders.
- **B:** Incorrect: causation remains one of the four attribution elements; the claim is that it is insufficient, not that it is irrelevant.
- **C:** Incorrect: the fault ladder runs from intention through knowledge and recklessness to negligence, and the hinge concerns the relation between causing and being answerable rather than the selection of a fault element.
- **D:** Incorrect: the duty requirement is what makes an omission chargeable at all, so a bystander with no relevant duty is precisely the case the requirement excludes.

Examiner trap 5: Using the hinge only in the exculpatory direction - contribution without control - halves its value, because the culpable-omission direction is what makes differentiated responsibility reach beyond those who struck the blow.

MCQ 6. Which condition of responsible punishment carries the unequal-administration objection

Among the seven conditions of responsible punishment, which one does the objection from unequal defence, bias and unreviewed discretion attack, and why is that condition not merely procedural?

- A. Fair procedure and reliable proof, because an unreliable evidential process cannot establish the culpability that the sanction is supposed to track in any particular case.
- B. Equal application without status bias, because a penalty whose abstract rule is neutral can still be applied so that severity tracks status, wealth or group rather than conduct.
- C. A competent and impartial authority, because an authority that lacks independence cannot separate the public administration of justice from the pursuit of private vengeance.
- D. Proportionality between wrong, responsibility and sanction, because a scale that is unequally applied ceases to rank offences consistently against one another across cases.

Answer: B.

Option explanations:

- **A:** Incorrect: reliability of proof is a distinct condition attacked by a different objection, namely fallibility, and the unequal-administration objection can hold even where each individual finding is reliable.
- **B:** Correct: the objection is precisely that neutral rules can be administered unequally, which is what condition 7 forbids, and it is the foundation of the social-justice argument against capital punishment.
- **C:** Incorrect: impartiality of the authority is condition 5 and carries the standing argument; unequal defence and resourcing operate even before an impartial tribunal.
- **D:** Incorrect: proportionality is the relation the objection ultimately disturbs, but the condition directly attacked is the requirement of equal application.

Examiner trap 6: Reading conditions 5 and 7 as administrative boxes rather than as normative requirements throws away the two strongest later moves in the clause - Duff's standing argument and the unequal-administration objection to the death penalty.

MCQ 7. The working penal standard under determinism

What does the compatibilist working standard require a court to establish, and what does it deliberately not require?

- A. It requires proof that the accused could have acted otherwise in exactly the same circumstances, and it does not require any account of the causal history that produced his conduct.
- B. It requires proof that no causal explanation of the accused's conduct is available, and it does not require that the accused be shown to have understood the relevant prohibition.
- C. It requires proof that the accused was free from social disadvantage, and it does not require any inquiry into whether he was subject to coercion at the time of the act.
- D. It requires that the accused could understand the relevant reasons and control his conduct adequately without responsibility-defeating coercion, and it does not require metaphysical free will.

Answer: D.

Option explanations:

- **A:** Incorrect: alternative possibilities are the libertarian requirement, and the compatibilist standard was formulated precisely to avoid depending on them.
- **B:** Incorrect: the standard is compatible with a full causal explanation of the conduct, which is what distinguishes it from libertarianism.
- **C:** Incorrect: social disadvantage bears on mitigation and on standing rather than on the threshold of responsible agency, and coercion is expressly part of the standard.
- **D:** Correct: understanding of relevant reasons, adequate control and the absence of responsibility-defeating coercion or incapacity are the three components, and metaphysical freedom is expressly not required.

Examiner trap 7: Announcing that determinism destroys responsibility and then continuing to argue about proportionate desert is a self-contradiction the examiner will see immediately, and the working standard exists to make the concession without the contradiction.

MCQ 8. What the six-family grid adds that a three-theory list cannot

Which pair of penal families is habitually omitted from a three-theory presentation, and which two arguments in this clause become unavailable once they are omitted?

- A. Prevention and expression, and the arguments lost are the incapacitation case for execution and the reason wrongful conviction is a grave wrong even after compensation.
- B. Restitution and denunciation, and the arguments lost are the victim's claim to repair and the community's interest in the public naming of serious offences.
- C. Deterrence and rehabilitation, and the arguments lost are Beccaria's calibration point and the four bounding conditions that make reform compatible with dignity.
- D. Retribution and restoration, and the arguments lost are the desert ceiling on severity and the mechanism by which reintegrative shaming reduces reoffending.

Answer: A.

Option explanations:

- **A:** Correct: prevention and expression are the two omitted families, and their omission removes the incapacitation argument at issue in the capital-punishment debate and Feinberg's unrefundable-condemnation point.
- **B:** Incorrect: restitution is treated within the restorative family and denunciation is the expressive family, so this pair names one omitted family and one that is not separately omitted.
- **C:** Incorrect: deterrence and rehabilitation are precisely two of the three families that a three-theory list normally does include.
- **D:** Incorrect: retribution is the third family always included, and restoration is usually mentioned even where it is treated superficially.

Examiner trap 8: Presenting punishment theory as retribution, deterrence and reform makes an answer oscillate between two positions that were never answering the same question, and it removes the family that explains why a wrongful conviction cannot be cured by money.

MCQ 9. Restitution against restorative justice

Why does the distinction between restitution and restorative justice matter on a victim-centred stem?

- A. Because restitution is available only in property offences while restoration extends to offences against the person, so the two apply to non-overlapping categories of wrongdoing.
- B. Because restitution is imposed by a court while restoration is agreed between the parties, so the two differ in the authority from which the eventual outcome derives.
- C. Because restitution is one possible outcome while restoration is a participatory process, so an answer that merges them cannot explain what the victim gains beyond compensation.
- D. Because restitution is backward-looking while restoration is forward-looking, so the two occupy opposite positions on the direction axis of the six-family classification.

Answer: C.

Option explanations:

- **A:** Incorrect: restitution is not confined to property offences, and the distinction being drawn is between an outcome and a process rather than between categories of offence.
- **B:** Incorrect: restitution may be agreed and restorative outcomes may be judicially supervised, so the source of authority does not track the distinction.
- **C:** Correct: restitution returns value or repairs loss as one outcome, while restorative justice is the process of acknowledgement, participation and reintegration inside which such an outcome may occur.

- **D:** Incorrect: both are classified as relational in the six-family grid, and restitution is not placed on the backward-looking side of it.

Examiner trap 9: Writing that restorative justice "means the offender compensates the victim" reduces a process to one of its possible outcomes and loses the participation, acknowledgement and reintegration that the theory was constructed to deliver.

MCQ 10. Which retributivism the human-rights stem is testing

A stem asks whether the retributive theory of punishment is against human rights. What must the answer distinguish before it can be answered at all?

- A. Kantian retributivism, which grounds punishment in the offender's rational agency, from Hegelian retributivism, which grounds it in the restoration of an objectively violated order of right.
- B. Ordinal retributivism, which ranks offences by seriousness, from cardinal retributivism, which fixes the severity of the entire scale and therefore determines how harsh punishment may become.
- C. Backward-looking retributivism, which answers the question of liability, from forward-looking retributivism, which answers the question of why the institution of punishment exists at all.
- D. Maximising retributivism, which reads desert as a command to inflict suffering, from limiting retributivism, which reads it as a necessary condition and a ceiling on what may be inflicted.

Answer: D.

Option explanations:

- **A:** Incorrect: the Kant-Hegel difference is real but does not decide the rights question, since both can be read in a maximising or a limiting way.
- **B:** Incorrect: the ordinal/cardinal distinction concerns proportionality and supplies the ceiling's anchor, but it is not the distinction between two readings of desert.
- **C:** Incorrect: there is no forward-looking version of retributivism; the label describes a backward-looking family, so the contrast is misdescribed.
- **D:** Correct: on the maximising reading desert commands infliction and can license excess, while on the limiting reading it forbids punishing the innocent and forbids exceeding culpability.

Examiner trap 10: Treating "retributivism" as a single position on the human-rights question guarantees that the answer addresses neither version, which is precisely the failure the stem is constructed to detect.

MCQ 11. Retribution and revenge

On which axis does the contrast between retribution and revenge do the most work in answering the "two wrongs do not make a right" objection?

- A. The temporal axis, since revenge responds immediately to the injury while retribution follows adjudication and therefore allows the passions of the moment to subside before sanction.
- B. The limit axis, since revenge has no intrinsic limit while retribution carries a ceiling fixed by culpability, so retribution constrains the response that revenge leaves unconstrained.
- C. The severity axis, since revenge is characteristically more severe than retribution and therefore produces outcomes that a proportionate public system would never impose on an offender.
- D. The publicity axis, since revenge is carried out privately while retribution is carried out openly and can therefore be observed, recorded and criticised by the wider community.

Answer: B.

Option explanations:

- **A:** Incorrect: delay is a feature of institutional process rather than of the retributive principle, and revenge may also be deferred without becoming retribution.
- **B:** Correct: the objection assumes that retribution simply adds a second harm, and the ceiling fixed by culpability is what shows the response to be constrained rather than merely reciprocal.

- **C:** Incorrect: severity is a contingent comparison and revenge may be mild, so this does not distinguish the two as kinds.
- **D:** Incorrect: publicity is a feature of the agent axis rather than a separate one, and a public act of vengeance would remain vengeance.

Examiner trap 11: Defending retribution as "an eye for an eye" concedes the identification with revenge in the first line, after which the ceiling, the impartial agent and the generality requirement can no longer be used.

MCQ 12. Beccaria's calibration point

What follows for penal policy from the claim that certainty and promptness matter more than severity, and which presupposition of the deterrent argument does it develop?

- A. It follows that penalties should be raised until offending declines, developing the presupposition that persons respond to the perceived costs attached to prohibited conduct.
- B. It follows that punishment should be abolished where prevention fails, developing the presupposition that preventive benefits must exceed direct and collateral harms.
- C. It follows that escalation is usually the wrong lever, developing the presupposition that sanctions must be known and sufficiently certain if they are to influence conduct.
- D. It follows that only calculated offences may be punished, developing the presupposition that less harmful alternatives to criminal sanction have been shown to be inadequate.

Answer: C.

Option explanations:

- **A:** Incorrect: this reverses the point, since the calibration claim is precisely that raising severity is a less effective instrument than raising the probability of detection.
- **B:** Incorrect: the calibration point concerns which lever to use rather than whether to punish, and it does not depend on the net-benefit presupposition.
- **C:** Correct: certainty and promptness bear directly on whether sanctions are known and reliably applied, which is the presupposition that fails where enforcement is rare or arbitrary.
- **D:** Incorrect: the point does not restrict the class of punishable offences, though it does explain why deterrence is strongest for calculated ones.

Examiner trap 12: Asserting that severe penalties obviously deter states an empirical claim without evidence and simultaneously contradicts the calibration point, which is the deterrent tradition's own correction of that assumption.

MCQ 13. The two structural failures of pure deterrence

At which of the three justifying questions does pure deterrence permit escalation without ceiling, and what repairs it?

- A. At the general justifying aim, and it is repaired by adding a communicative account under which punishment addresses the offender as a citizen rather than as an object of management.
- B. At the question of liability, and it is repaired by requiring reliable proof of guilt so that no person may be punished except for a voluntary act attributable to him under a known law.
- C. At the general justifying aim, and it is repaired by conceding that the deterrent effect of any given penalty is an empirical controversy on which no philosophical claim should rest.
- D. At the question of amount, and it is repaired by a desert side-constraint that fixes an ordinal ranking under a cardinal ceiling, so severity cannot rise with every marginal preventive gain.

Answer: D.

Option explanations:

- **A:** Incorrect: the general justifying aim is where deterrence performs well, and the communicative account addresses the manner of punishment rather than its quantum.
- **B:** Incorrect: liability is deterrence's other failure, but the failure described in the stem - escalation without ceiling - is a failure of severity.
- **C:** Incorrect: empirical uncertainty is a separate discipline the clause imposes, and acknowledging it does not supply a ceiling on severity.
- **D:** Correct: escalation without ceiling is a Q3 failure, and the desert side-constraint supplies the missing ceiling through ordinal ranking and a cardinal anchor.

Examiner trap 13: Locating both of deterrence's failures at liability collapses two distinct defects into one and conceals the fact that the ceiling on severity has to come from a different source than the prohibition on punishing the innocent.

MCQ 14. Why the rule-utilitarian reply is not decisive

What is the precise weakness of the reply that legality and due process protect long-run utility and therefore forbid punishing the innocent?

- A. It makes the prohibition contingent on the social costs of discovery, so an injustice that remained secret, or that public opinion welcomed, would escape the objection while remaining an injustice.
- B. It makes the prohibition depend on the existence of written constitutional guarantees, so a legal system without entrenched rights would have no reason to observe the protection at all.
- C. It makes the prohibition rest on the offender's consent to the penal system, so a person who rejects the authority of the state could not coherently be protected by the same argument.
- D. It makes the prohibition follow from the definition of punishment, so the reply is circular and cannot be used against an opponent who defines punishment differently at the outset.

Answer: A.

Option explanations:

- **A:** Correct: the protection is grounded in the erosion of trust, which is an effect of exposure, so an undiscovered or popular injustice removes the justification while leaving the wrong intact.
- **B:** Incorrect: rule-utilitarian reasoning does not depend on entrenched guarantees and could recommend such guarantees on its own grounds.
- **C:** Incorrect: consent plays no role in the rule-utilitarian defence, which appeals to aggregate consequences rather than to agreement.
- **D:** Incorrect: the reply is an appeal to consequences rather than a definitional move, so the charge of circularity does not apply to it.

Examiner trap 14: Accepting the rule-utilitarian reply as decisive skips the counter-reply, and the counter-reply is where the marks are, because it shows that rights which hold only when the violation might be discovered are not functioning as rights.

MCQ 15. What makes the reformatory theory compatible with dignity

A stem asks whether the reformatory theory of punishment is in tune with human dignity. What converts the answer from an endorsement into an argued position?

- A. The observation that reform addresses ignorance, addiction, trauma, exclusion and distorted incentives, which shows that it engages the causes of offending rather than merely its symptoms.
- B. The observation that reform is forward-looking while retribution is backward-looking, which shows that the two families answer different questions and need not be treated as rivals at all.
- C. The four bounding conditions - proportionality, consent where possible, review and rights - which answer the objection that compulsory treatment can pathologise dissent and become indefinite.
- D. The observation that persons are more than their worst act, which shows that a punishment foreclosing all future membership treats a human being as exhausted by a single episode of conduct.

Answer: C.

Option explanations:

- **A:** Incorrect: this is part of the theory's content rather than its answer to the paternalism objection, and stating it leaves the objection standing.
- **B:** Incorrect: the direction contrast classifies the families and does not address whether reformatory intervention respects the person it acts upon.
- **C:** Correct: the objection is that therapeutic rationales can become indefinite and coercive, and the four bounding conditions are the reply that makes the dignity claim defensible.
- **D:** Incorrect: this is the first step of the dignity argument itself, so citing it restates the claim under challenge rather than defending it.

Examiner trap 15: Answering the dignity stem with an unconditional yes leaves the paternalism objection unanswered, and the marks in that question are carried entirely by the conditions under which the yes holds.

MCQ 16. Why incapacitation cannot justify execution on its own terms

The incapacitation argument for capital punishment is defeated without denying that execution incapacitates. How?

- A. By showing that incapacitation is a forward-looking rationale and that forward-looking rationales are inadmissible at the question of liability, where only desert may operate as a criterion.
- B. By showing that secure imprisonment achieves the same protective end, so the necessity that a protective rationale must satisfy is not met by the more final of the two available means.
- C. By showing that the offender's future dangerousness cannot be predicted reliably, so the factual premise on which any incapacitative sentence rests is unavailable in the individual case.
- D. By showing that incapacitation removes the desert ceiling, so a system built upon it may detain a person for longer than the seriousness of the original wrong could ever have warranted.

Answer: B.

Option explanations:

- **A:** Incorrect: forward-looking rationales are admissible at the general justifying aim, and the objection here concerns the choice of means rather than the admissibility of the rationale.
- **B:** Correct: a protective rationale is governed by necessity, and necessity fails once a less final means achieves the same protective end.
- **C:** Incorrect: predictive unreliability is a genuine difficulty for incapacitative sentencing generally, but it is not the argument that defeats execution specifically.

- **D:** Incorrect: this is the reason incapacitation cannot stand alone as a general theory, not the reason it fails to justify execution when imprisonment is available.

Examiner trap 16: Answering the incapacitation argument by denying that execution prevents reoffending concedes an obviously false claim, whereas the necessity route concedes the effect and denies that the means was required.

MCQ 17. The two proportionality questions

Why does the observation that a uniformly doubled penalty scale remains perfectly ranked matter for the theory of punishment?

- A. Because it shows that ordinal proportionality places no ceiling on severity, so the anchor for the scale as a whole must come from constraints on what may be done to a person at all.
- B. Because it shows that cardinal proportionality is impossible to establish, so proportionality claims should be confined to the relative ranking of offences against one another.
- C. Because it shows that desert intuitions are unreliable, so the entire proportionality requirement should be replaced by a forward-looking assessment of preventive necessity.
- D. Because it shows that severity is irrelevant to justice, so a system may set its penalty levels wherever administrative convenience and available resources happen to dictate.

Answer: A.

Option explanations:

- **A:** Correct: doubling preserves the ranking, which demonstrates that ordinal proportionality is silent about the level of the scale and that the cardinal anchor must be supplied externally.
- **B:** Incorrect: the difficulty of anchoring the scale is a reason to seek the anchor in dignity and humane treatment rather than to abandon the cardinal question.
- **C:** Incorrect: ordinal intuitions are the more reliable part of desert reasoning, so the observation does not impugn desert generally.
- **D:** Incorrect: the observation shows that ranking alone is insufficient, not that severity is morally indifferent, which would abandon proportionality altogether.

Examiner trap 17: Treating ordinal ranking as the whole of proportionality leaves an answer unable to say why a uniformly brutal scale is objectionable, and it is exactly the gap that limiting retributivism has to fill from outside desert.

MCQ 18. The juvenile stem and the three-term relation

Why is adjusting a juvenile's sentence for developmental capacity an application of the proportionality principle rather than an exception to it?

- A. Because proportionality is a legal rather than a moral requirement, and legal systems universally provide separate procedures and sentencing frameworks for young offenders.
- B. Because prospects of reform are stronger in the young, and proportionality must take account of the future conduct that a sentence is expected to influence in the individual case.
- C. Because procedural reliability is weaker where the accused is young, and a sentence resting on unreliable findings cannot be proportionate to anything that has actually been established.
- D. Because proportionality holds between wrong, responsibility and sanction, so reducing the responsibility term alters the proportionate sanction without weakening the principle at all.

Answer: D.

Option explanations:

- **A:** Incorrect: this appeals to institutional practice rather than to the structure of the principle, and it cannot show that the adjustment is required rather than merely customary.
- **B:** Incorrect: prospects of reform are a distinct fourth factor and belong to a forward-looking rationale rather than to the proportionality relation itself.

- **C:** Incorrect: procedural reliability is the fifth factor and is genuinely independent, but it concerns the evidential basis rather than the calculation of proportion.
- **D:** Correct: the relation has three terms, so a change in the responsibility term changes the proportionate sanction as a matter of applying the principle correctly.

Examiner trap 18: Accepting the quoted principle that severity should track seriousness and then inferring a severe sentence for a grave juvenile offence treats a three-term relation as though it had two terms, which is the inference the stem is built to catch.

MCQ 19. Feinberg's differentia

What does Feinberg identify as the difference between a punishment and a mere penalty, and what step in the argument forces that conclusion?

- A. The identity of the imposing authority, forced by the observation that criminal courts and administrative bodies exercise different kinds of jurisdiction over those who appear before them.
- B. The authoritative condemnation punishment carries, forced by the observation that severity cannot be the differentia because some penalties are heavier than some punishments.
- C. The involuntary character of punishment, forced by the observation that penalties may be discharged by payment whereas a criminal sentence must be undergone by the offender himself.
- D. The public record punishment creates, forced by the observation that convictions are registered and disclosed whereas administrative penalties leave no comparable lasting trace.

Answer: B.

Option explanations:

- **A:** Incorrect: the same authority may impose both kinds of hardship, so the identity of the imposing body cannot carry the distinction.
- **B:** Correct: the argument turns on the point that severity cannot be the differentia, which forces the conclusion that the difference is symbolic and therefore conceptual.
- **C:** Incorrect: fines are punishments and are discharged by payment, so this does not track the distinction being drawn.
- **D:** Incorrect: the record is a consequence of condemnation rather than its ground, and administrative penalties may also be recorded.

Examiner trap 19: Saying that punishment "sends a message to society" gestures at the expressive account without supplying its criterion, and without the criterion none of the four things the account uniquely explains can be derived.

MCQ 20. Standing rather than causation

Why is Duff's standing argument stronger, on a social-justice stem, than the claim that poverty causes crime?

- A. Because it is supported by a wider range of evidence, whereas the causal claim depends on contested findings that vary considerably between societies and across periods.
- B. Because it applies to every offender rather than only to the deprived, whereas the causal claim is confined to a subset of offenders and cannot generalise beyond them.
- C. Because it is a claim about the authority of the accuser rather than about the determination of conduct, so the reply that many deprived persons do not offend is simply irrelevant to it.
- D. Because it concedes the offender's responsibility rather than denying it, so it cannot be accused of excusing wrongdoing and therefore avoids the strongest objection to mitigation arguments.

Answer: C.

Option explanations:

- **A:** Incorrect: the standing argument does not rest on empirical evidence at all, so describing it as better supported misstates its type.
- **B:** Incorrect: the standing argument applies precisely where the polity has denied a particular person the conditions of citizenship, so it is not general in that way.
- **C:** Correct: the argument is normative and concerns whether this accuser may accuse, which is untouched by the observation that deprivation does not determine conduct.
- **D:** Incorrect: the standing argument does leave responsibility intact, but the decisive advantage is its immunity to the empirical reply rather than its rhetorical safety.

Examiner trap 20: Substituting the poverty slogan for the standing argument converts an unanswerable normative point into an empirical claim that can be dismissed in a single sentence.

MCQ 21. The caveat that must accompany Foucault

What is the correct placement of Foucault in a punishment answer, and what is the precise reason for it?

- A. The critical paragraph, because he offers a genealogy of penal power rather than a justification, and his strongest result is that reformatory rhetoric can accompany intensified control.
- B. The introductory paragraph, because his historical account establishes the context within which every modern theory of punishment must be situated before it can be evaluated.
- C. The justificatory paragraph, because his analysis of discipline supplies a fourth rationale for punishment alongside retribution, deterrence and rehabilitation in contemporary conditions.
- D. The concluding paragraph, because his account of panopticism demonstrates that all penal institutions ultimately fail, which entails that no justification of punishment can succeed.

Answer: A.

Option explanations:

- **A:** Correct: the account is genealogical rather than normative, and its most valuable use is to qualify the reformatory claim by showing that stated aims must be judged through techniques.
- **B:** Incorrect: placing him first suggests that his history frames the normative debate, whereas his analysis presupposes rather than supplies normative criteria.
- **C:** Incorrect: treating the analysis as a fourth theory of justification is the category error the caveat exists to prevent.
- **D:** Incorrect: this attributes a normative conclusion he does not draw and turns a contested functional thesis into a demonstration.

Examiner trap 21: Attaching panopticism to a named contemporary technology, database or programme converts an analytical model into an unsupported empirical assertion about an actual practice, which this package makes nowhere.

MCQ 22. Braithwaite's mechanism

Why does Braithwaite hold that stigmatising shaming is criminogenic while reintegrative shaming is regulatory?

- A. Because stigmatising shaming is administered publicly while reintegrative shaming occurs privately, so the two differ in the audience before which disapproval is expressed to the offender.
- B. Because stigmatising shaming is imposed by the state while reintegrative shaming is expressed by families and communities, so the two differ in the source from which disapproval issues.
- C. Because stigmatising shaming is disproportionate while reintegrative shaming is proportionate, so the two differ in the severity of the burden that disapproval imposes on the offender.
- D. Because stigmatising shaming severs the bonds that make disapproval matter and creates outcast identities, while reintegrative shaming preserves those bonds and offers a route back.

Answer: D.

Option explanations:

- **A:** Incorrect: both kinds may be expressed publicly or privately, and the audience is not what makes the difference in the mechanism.
- **B:** Incorrect: state processes may shame reintegratively and communities may stigmatise, so the source of the disapproval does not track the distinction.
- **C:** Incorrect: severity is not the criterion, since the distinction turns on what is condemned and whether reacceptance is available.
- **D:** Correct: the mechanism is that informal disapproval regulates only where bonds survive it, so severing bonds destroys the regulatory effect and produces outcast identities instead.

Examiner trap 22: Praising reintegrative shaming without stating its presupposition - that the offender values inclusion and that the community will reaccept him - omits precisely the condition that fails for already-excluded groups.

MCQ 23. Why corruption is wrong in five ways rather than one

What does the independence of the five wrongs of corruption allow an answer to establish?

- A. That corruption is best analysed as a species of theft, since the diversion of entrusted resources is present in every one of the five wrongs identified in the account.
- B. That corruption requires a criminal sanction rather than a civil remedy, since each of the five wrongs independently satisfies the harm filter on criminalisation.
- C. That corruption is a public wrong even in cases where no identifiable person can be shown to be measurably worse off as a result of the transaction complained of.
- D. That corruption is more serious than most offences against the person, since a single corrupt act violates five distinct moral requirements at the same moment.

Answer: C.

Option explanations:

- **A:** Incorrect: several species of corruption, such as favouritism and regulatory capture, involve no diversion of resources at all.
- **B:** Incorrect: the account does not settle the choice of sanction, and the harm filter is precisely the one that corruption strains.
- **C:** Correct: where the harm-based objection is weak because the transaction produced no measurable loss, breach of trust and the displacement of public rules still hold independently.
- **D:** Incorrect: counting violated requirements does not establish comparative gravity, and the account makes no such ranking claim.

Examiner trap 23: Giving a single reason why corruption is wrong leaves an answer defenceless against the case where the bribe merely accelerated a decision that would have been taken anyway, which is where the trust and rule-of-law wrongs do all the work.

MCQ 24. The particularism-universalism tension, characterised precisely

What is the most accurate characterisation of the tension that corrupt practices reveal between particularistic and universalistic normative standards?

- A. A conflict between two rival moralities, one grounded in kinship and community and the other in impartial reason, of which only the second is genuinely defensible in public life.
- B. A category error of role executed for advantage, in which a norm valid within one domain is imported into an office that is governed by criteria excluding it.
- C. A failure of moral education, in which office-holders have not internalised the impartial standards that their positions require them to apply to those who come before them.
- D. A conflict between tradition and modernity, in which inherited obligations of kinship survive into institutional settings designed on the assumption that they had disappeared.

Answer: B.

Option explanations:

- **A:** Incorrect: particularistic obligations are genuine within their own domain, so treating them as a defeated rival morality misdescribes both sides of the tension.
- **B:** Correct: both norms are valid in their proper domains, and corruption consists in acting on a legitimate particular loyalty inside a role governed by universal public standards.
- **C:** Incorrect: this reduces a structural tension to an individual deficiency and cannot explain why the tension is described as inherent.
- **D:** Incorrect: the tension does not depend on any historical narrative, and it arises wherever office-holders remain members of families and communities.

Examiner trap 24: Agreeing with the quoted statement without adding the domain qualification produces assent rather than argument, and a *do you agree* stem is scored on the grading of the position rather than on its direction.

Remedial drills - eight errors that cost marks every year

MCQ 25. Remedial - refusing a disjunction with a reason

A script answers "is corruption a systemic issue or an ethical issue?" by writing that both matter. What must be added for the refusal of the disjunction to count as an argument?

- A. A statement that structure and agency are jointly explanatory in every area of social life, which establishes that the disjunction is false as a general methodological principle.
- B. A statement that transparency, audit, competition and accountability are more effective remedies than moral education, which establishes a practical priority between the two limbs.
- C. A statement that the Prevention of Corruption Act and the Lokpal and Lokayuktas Act address the systemic limb, which establishes that institutional remedies are already available.
- D. A statement of the two explanatory failures: pure ethics cannot explain variation across institutions, and pure structure cannot explain variation across individuals in identical positions.

Answer: D.

Option explanations:

- **A:** Incorrect: a general methodological slogan asserts the conclusion instead of arguing for it in this case, which is exactly what the examiner is looking for.
- **B:** Incorrect: this settles an ordering of remedies without showing why the diagnostic disjunction itself fails.
- **C:** Incorrect: enacted frameworks are legal facts and do not establish anything about the correct diagnosis of the wrong.
- **D:** Correct: the disjunction fails because each account leaves a specific explanatory residue that only the other can supply, and naming the two residues is the argument.

Examiner trap 25: Writing "both are important" is the sentence that signals no position has been taken, and it is indistinguishable from the answers of candidates who have not understood either diagnosis.

MCQ 26. Remedial - disclosure is not incidence

Why is it an error to conclude that a regime which exposes more corruption is thereby more corrupt?

- A. Because regime type conditions the visibility, cost and form of corruption more than its existence, so a higher rate of disclosure may reflect stronger scrutiny rather than more wrongdoing.
- B. Because autocratic regimes suppress information entirely, so no comparison between regime types can ever be made on the basis of the disclosures each of them happens to produce.
- C. Because democratic regimes generate patronage and campaign-finance risks, so their higher disclosure rates are offset by structural vulnerabilities that autocracies do not share at all.
- D. Because corruption is defined by the misuse of entrusted power, so its incidence can only be measured by the number of offices held rather than by the number of cases reported.

Answer: A.

Option explanations:

- **A:** Correct: exposure is a function of scrutiny, and confusing the disclosure rate with the incidence rate is the standard error on the regime stem.
- **B:** Incorrect: this overstates the position into a claim that no comparison is ever possible, which the account does not assert.
- **C:** Incorrect: democratic vulnerabilities are real and separately noted, but they do not explain why disclosure must not be read as incidence.
- **D:** Incorrect: this proposes an unusable measure and does not address the inferential error the question identifies.

Examiner trap 26: Ranking regimes by the volume of reported scandal converts a measure of institutional openness into a measure of institutional corruption, and it will read as a failure to notice how the evidence was produced.

MCQ 27. Remedial - testing an analogy rather than asserting it

What is the correct structure for answering whether corruption is a form of mass violence?

- A. Assert the analogy on the ground that both produce widespread harm, then support it with the observation that the victims of large-scale corruption are numerous though unidentified.
- B. State the necessary conditions for violence, test corruption against each, concede the disanalogies in directness and intent, and reach a verdict permitting only analogical use with a demonstrated harm-chain.
- C. Deny the analogy on the ground that corruption involves no physical force, then conclude that the language of violence should never be extended to institutional or economic wrongdoing.
- D. Reframe the question as one about structural harm, then argue that the concept of violence is too contested for any determinate answer to be given about a case of this kind.

Answer: B.

Option explanations:

- **A:** Incorrect: asserting the analogy from shared harmfulness is precisely the move the question is designed to catch, since it supplies no test.
- **B:** Correct: the conditions must be stated first so that corruption can be tested against each, and the verdict must include the partial fit rather than a flat answer either way.
- **C:** Incorrect: flat denial ignores the genuine structural-violence case where diversion of essential resources foreseeably exposes many persons to deprivation.
- **D:** Incorrect: retreating to indeterminacy declines the question, and the account supplies a determinate verdict with a stated condition.

Examiner trap 27: An "is X a form of Y?" stem is scored on whether the necessary conditions for Y were stated before X was tested, and an answer that reaches a verdict without stating them has asserted rather than argued.

MCQ 28. Remedial - five claims hidden in one phrase

Which characterisation of political responsibility is correct, and what must never be inferred from it?

- A. It attaches to institutions with decision procedures and grounds their liability for what they decided; it must never be inferred that individual officers within them are personally guilty.
- B. It attaches to bystanders who could have acted at acceptable cost; it must never be inferred that responsibility is equal regardless of knowledge, capacity and the risk that action involved.
- C. It attaches to citizens collectively and grounds duties of reparation, memory and reform; it must never be inferred that criminal guilt has thereby been established by membership.
- D. It attaches to those who planned, ordered, incited or committed the acts; it must never be inferred that others in the same organisation share the same degree of criminal culpability.

Answer: C.

Option explanations:

- **A:** Incorrect: this describes organisational liability, which is a different one of the five kinds.
- **B:** Incorrect: this describes moral responsibility for omission, which attaches to individuals by role and situation.
- **C:** Correct: political responsibility attaches to citizens collectively, is partly defensible, and grounds reparation, memory and reform without ever converting into guilt by membership.
- **D:** Incorrect: this describes criminal guilt, which is the paradigm case and attaches to individuals only.

Examiner trap 28: Conflating political responsibility with criminal guilt reproduces the perpetrator's own reasoning, since guilt by membership is the very logic that makes atrocity thinkable in the first place.

MCQ 29. Remedial - what the banality thesis does and does not claim

How must Arendt's banality thesis be qualified when it is used in a mass-violence answer?

- A. By noting that it applies only to bureaucratic perpetrators, so that participants who acted from ideological conviction fall outside its scope and require an entirely separate explanation.
- B. By noting that it concerns the psychology of perpetration and not the degree of guilt, so that it explains how ordinary participation is possible without reducing anyone's responsibility.
- C. By noting that it was advanced in a single work about a single trial, so that its generalisation to other cases of organised violence remains speculative and should be presented as such.
- D. By noting that it presupposes reflective judgment as a condition of responsibility, so that participants incapable of such judgment cannot be held responsible for what they did.

Answer: B.

Option explanations:

- **A:** Incorrect: the thesis is not confined to bureaucrats, and the objection about ideology is answered rather than accommodated by restricting the scope.
- **B:** Correct: without this control the thesis reads as mitigation, and the account expressly states that banality concerns psychology rather than degree of guilt.
- **C:** Incorrect: the source is correctly identified, but provenance is not the qualification the thesis requires when it is deployed.
- **D:** Incorrect: this inverts the presupposition, since the requirement of reflective judgment is what makes failure to exercise it culpable rather than excusing.

Examiner trap 29: Using the banality thesis without its control converts an account of how atrocity becomes possible into an excuse for those who carried it out, and it will be marked as an excuse.

MCQ 30. Remedial - the Convention against Lemkin's conception

Which statement about the relation between Lemkin's conception of genocide and the 1948 Convention is accurate?

- A. The Convention is narrower than Lemkin's conception, which extended to the destruction of a group's institutions, language, culture and economic existence, and it omits political groups from its protected categories.
- B. The Convention is wider than Lemkin's conception, which was confined to the physical killing of members of a group, and it extends protection to political and social groups alongside the four named.
- C. The Convention adopts Lemkin's conception in full, since both require a coordinated plan aimed at the destruction of the essential foundations of the life of a group as its defining element.
- D. The Convention abandons Lemkin's conception entirely, since it substitutes a requirement of widespread or systematic attack on a civilian population for any reference to the destruction of a group.

Answer: A.

Option explanations:

- **A:** Correct: Lemkin's conception encompassed institutional and cultural foundations with killing as one method among several, and the adopted text is narrower and lists four protected categories excluding political groups.
- **B:** Incorrect: this reverses the relation and misdescribes Lemkin, who did not define genocide as mass killing.
- **C:** Incorrect: asserting full adoption is the single commonest factual error on this material.
- **D:** Incorrect: the widespread-or-systematic-attack formula belongs to crimes against humanity, which is a neighbouring and distinct category.

Examiner trap 30: Extending the protected categories beyond the four named, or claiming that the Convention enacted Lemkin's conception whole, converts a precise and checkable point into a demonstrable error.

MCQ 31. Remedial - classifying the Indian legal facts

Which classification of the four Indian legal facts used in this package is correct throughout?

- A. *Bachan Singh* is a statute; the Law Commission's Report No. 262 is a judgment; the Prevention of Corruption Act is an advisory report; the Lokpal and Lokayuktas Act is a constitutional amendment.
- B. *Bachan Singh* is an advisory report; the Law Commission's Report No. 262 is a statute; the Prevention of Corruption Act is a judgment; the Lokpal and Lokayuktas Act is an executive instruction.
- C. *Bachan Singh* is a constitutional amendment; the Law Commission's Report No. 262 is an enacted statute; the Prevention of Corruption Act is a judgment; the Lokpal and Lokayuktas Act is a report.
- D. *Bachan Singh* is a judgment; the Law Commission's Report No. 262 is an advisory report; the Prevention of Corruption Act is a statute; the Lokpal and Lokayuktas Act is a statute.

Answer: D.

Option explanations:

- **A:** Incorrect: every classification in this option is wrong, and the description of the Lokpal legislation as a constitutional amendment compounds the error.
- **B:** Incorrect: the judgment and the report have been exchanged, and the Prevention of Corruption Act is misdescribed as a judicial decision.
- **C:** Incorrect: a judgment is described as a constitutional amendment and an advisory report as enacted law, which is the misclassification the traps expressly warn against.
- **D:** Correct: a 1980 Supreme Court judgment, a 2015 official advisory report, and two enacted statutes of 1988 as amended in 2018 and of 2013 respectively.

Examiner trap 31: Treating the 2015 Law Commission report as though it had abolished the death penalty for ordinary crimes confuses a recommendation with an enactment, and the report itself expressly excluded specified terrorism-related and war contexts from what it recommended.

MCQ 32. Remedial - what this owner does not own

Which of the following demands falls outside this clause and must be routed rather than developed?

- A. Whether the retributive theory of punishment can be reconciled with human rights, which requires the distinction between limiting and maximising readings of desert.
- B. Whether corrupt practices reveal a tension between particularistic and universalistic normative standards, which requires the account of entrusted office and role boundaries.
- C. Whether rights are best analysed as claims correlative to duties and how accountability is owed by the state to the citizen, which belongs with rights, duties and accountability.
- D. Whether the severity of punishment should be proportionate to the seriousness of the crime when the offender is a juvenile, which requires the three-term proportionality relation.

Answer: C.

Option explanations:

- **A:** Incorrect: this is a directly owned demand and is answered by the limiting/maximising distinction inside this clause.
- **B:** Incorrect: this is a directly owned demand and is answered by the entrusted-office analysis and the role-boundary remedy.
- **C:** Correct: the general analysis of rights, duties and accountability belongs to Individual and State, and enters here only as a named bridge through the standing condition.
- **D:** Incorrect: this is a directly owned demand and is answered by the three-term relation and the five-factor juvenile grid.

Examiner trap 32: Answering a punishment stem by expounding a general theory of rights and duties imports another owner's material, spends the word count on it, and leaves the penal question - who may punish, for what, and how much - unanswered.

PYQS AND ANSWER PRACTICE

Practice status and source discipline - read once, applies to every solution below

Every model answer here is independent learner practice and is **never** an official UPSC key; UPSC publishes no descriptive model answer for Philosophy Paper II. Question wording is reproduced exactly as printed in the official papers, including the 2019 paper's double negative in **"Is corruption not a form of mass violence?"**, the 2023 paper's quotation marks around **"Severity of punishment should be proportionate to the seriousness of the crime."**, and the 2025 paper's capitalisation of **"Capital Punishment"** in the right-to-life part - all preserved verbatim inside the question lines. The 2018 to 2025 Paper II texts are held locally, and the English wording of every part below follows the repository's verified Socio-Political PYQ ledger. Works are cited by author and title only: **Kant, The Metaphysics of Morals**; **Hegel, Philosophy of Right**; **Bentham, An Introduction to the Principles of Morals and Legislation**; **Beccaria, On Crimes and Punishments**; **Hart's** separation of the general justifying aim from distribution and severity; **Feinberg, "The Expressive Function of Punishment"**; **Duff, Punishment, Communication, and Community**; **Foucault, Discipline and Punish (1975 French; 1977 English translation)**; **Braithwaite, Crime, Shame and Reintegration**; **Arendt, Eichmann in Jerusalem**; and **Lemkin, Axis Rule in Occupied Europe* (1944)**. No page, chapter, edition or verbatim wording is asserted for any of them, and no author is quoted anywhere in this workbook. Six dated facts appear, each classified before it is used - the **Genocide Convention (1948)**, in force **1951**; **Lemkin's Axis Rule in Occupied Europe (1944)**; the **Prevention of Corruption Act, 1988**, amended **2018**; the **Lokpal and Lokayuktas Act, 2013**; **Bachan Singh v. State of Punjab (1980)**; and the **Law Commission of India, Report No. 262, The Death Penalty (2015)**. ANALYSIS: Interpretive disputes - whether desert can justify state-inflicted suffering as well as it limits it, whether deterrent effect differs measurably between capital and non-capital penalties, whether groups have a morally significant existence not exhausted by their members' interests, and whether restorative process can be made proportionate - are flagged as contested rather than settled. WRONG: **No country, community, party, government, movement, leader, technology, programme or historical episode is named anywhere as an instance of mass violence, genocide, communal violence, pogrom, panopticism or surveillance**, and no statute, judgment or report is used as evidence for or against a philosophical thesis.

Answer-length convention used throughout this package. UPSC Philosophy Paper II parts are written longer than General Studies answers. The working bands used here are **10 marks - about 150 to 220 words**, **15 marks - about 250 to 330 words**, and **20 marks - about 330 to 400 words**. Every solution below sits inside its declared band, and the demand decoding, the verdict heading, the "why this earns marks" notes and the "how to improve this answer" notes are teaching apparatus that sit **outside** the timed word count.

Coverage. ANALYSIS: **Corpus signal:** this clause owns **12 of 112** Socio-Political question-parts in the 2018-2025 corpus, distributed **2018: 1, 2019: 2, 2020: 2, 2021: 1, 2022: 2, 2023: 1, 2024: 1, 2025: 2**. All twelve are solved in full below, followed by **six original solved Mains models**, two each at 10, 15 and 20 marks. The internal distribution is worth knowing before the examination: **corruption** carries five parts (2018 Q1(e), 2019 Q1(d), 2020 Q4(c), 2022 Q1(c), 2025 Q1(a)); **capital punishment** carries four (2019 Q4(c), 2022 Q1(e), 2024 Q3(b), 2025 Q3(a)); **punishment theory** carries two (2020 Q3(c), 2021 Q2(b)); and **proportionality** carries one (2023 Q4(a)). ANALYSIS: **Genocide carries none in the held cycle and remains a full syllabus obligation** - it is printed in the clause, and the absence of a past question is not evidence about the next one. ANALYSIS: Ownership discipline: general rights, duties and accountability belong to **Individual and State**; justice, equality and liberty as ideals to **Social and Political Ideals**; regime forms and legitimacy to **Forms of Government**; gender doctrine to **Gender Discrimination**; caste doctrine and the Gandhi-Ambedkar comparison to **Caste Discrimination**. None of those is counted here. WRONG: Do not route every occurrence of the words "justice", "violence" or "rights" to this owner: ownership turns on the printed pairing of crime with punishment and on the four named applications.

Solved PYQ 1 · 2018 · Q1(e) · 10 marks

Question: What measures do you suggest to eradicate corruption in Indian democracy?

Demand decoding

Element	Requirement
Directive	"What measures do you suggest" - a first-person prescriptive demand; recommendations must be given, not merely surveyed
Core issue	Which variables make entrusted office misusable, and what follows for institutional design
Scope boundary	Ten marks: the generating principle, the three structural levers, the ethical residue, one limit
Key distinction	Certainty of detection against severity of penalty; structural reform against moral exhortation
Non-negotiables	A principle before the list; the two Indian statutes classified; no characterisation of any government or party

Independent model answer

The principle before the list. ANALYSIS: A list of measures is worth little unless a diagnosis generates it. Corruption is the misuse of **entrusted** power, so measures must attack the three variables that make office misusable: **monopoly, discretion and impunity.**

Reducing monopoly. FACT: Where a single office controls a decision that citizens cannot obtain elsewhere, the office-holder captures a rent. Plural providers, competitive allocation and effective appeal remove the rent at its source.

Bounding discretion. FACT: Discretion cannot be abolished, since rules cannot anticipate every case, but it can be bounded by published criteria, recorded reasons, defined conflicts of interest and mandatory recusal.

Defeating impunity. FACT: Transparency, independent audit and independent investigation raise the probability of detection. ANALYSIS: **Beccaria's** point is decisive: certainty and promptness matter more than severity, and corruption is the paradigm calculated offence, so detection is the operative lever.

The ethical limb. ANALYSIS: Design cannot complete the task, because auditors and investigators are themselves office-holders and every rule leaves a residue of judgment. Professional ethos must occupy that residue.

Classification note. FACT: The **Prevention of Corruption Act, 1988** (amended **2018**) is an enacted criminal-law framework; the **Lokpal and Lokayuktas Act, 2013** an accountability framework. ANALYSIS: Neither proves the ethics settled.

Verdict. ANALYSIS: Reduce opportunity and raise detection first; invest in ethos where design cannot reach. "Eradicate" overstates what any design can achieve.

Why this earns marks

Answer-writing focus: a "what measures do you suggest" stem is scored on whether the recommendations are **generated** rather than recalled. Scripts that list transparency, accountability, e-governance and moral education have produced an administration answer. Naming monopoly, discretion and impunity as the variables converts the same list into philosophy, because each measure is then derived.

Exam-length execution - 10 marks, about 150 to 220 words: principle two lines; three levers one line each with their mechanism; the certainty-over-severity point one line; the ethical residue two lines; classification one line; verdict one line. Compression plan if short of time: drop the classification note and keep the certainty-over-severity point, which is the sentence that shows a theory is being applied.

- **Structure:** diagnosis -> three structural levers -> the detection point -> the ethical residue -> classified illustration -> qualified verdict.
- **Doctrine:** corruption as misuse of entrusted power; the systemic ecology within which an ethical act occurs.
- **Evidence:** Beccaria on certainty and promptness; the two Indian statutes, classified.
- **Distinction:** certainty of detection against severity of penalty.
- **Criticism:** the regress that design cannot close, and the overstatement in "eradicate".

How to improve this answer

Add one sentence naming the **regress** explicitly - that the designers and auditors occupy offices with the same incentive structure - because that is what makes the ethical limb necessary rather than decorative. If two more lines are available, note that the priority is asymmetric: structural reform first because it fixes the opportunity set within which character operates. Do **not** add examples of Indian corruption cases: the stem asks for measures, and characterising any government, party or episode breaches the package's evidence discipline.

Solved PYQ 2 · 2019 · Q1(d) · 10 marks

Question: Is corruption not a form of mass violence? Discuss.

Demand decoding

Element	Requirement
Directive	"Is X not a form of Y? Discuss" - a conceptual test, complicated by a double negative that invites careless assent
Core issue	Whether the necessary conditions for violence are satisfied by institutional wrongdoing with diffuse victims
Scope boundary	Ten marks: conditions stated, corruption tested, disanalogies conceded, verdict with the safer term
Key distinction	Analogical extension with a demonstrated harm-chain against conceptual inflation
Non-negotiables	Conditions before application; concession of directness and intent; the term "structural harm"

Independent model answer

Position, stated first. ANALYSIS: Only analogically, and only where a harm-chain is demonstrated; otherwise the accurate term is **structural harm**.

State the test before applying it. FACT: Violence in the paradigm sense involves large-scale harm to persons, direct physical force, intent to harm the victims, identifiable victims, and abuse of power where it is organised.

Corruption tested against each. FACT: Large-scale harm: often satisfied, since diversion of essential resources can foreseeably expose many persons to avoidable deprivation, danger or exclusion. FACT: Abuse of institutional power: satisfied, and it is the shared feature. WRONG: Direct physical force: not satisfied - the core disanalogy. WRONG: Intent to harm: usually absent, since the intent is to gain rather than to injure. WRONG: Identifiable victims: absent; the victims are diffuse and the causal chains invisible.

What the "for" case establishes. ANALYSIS: Diffuse victims, cumulative harm, invisibility of causal chains and abuse of institutional power together justify treating grave corruption as a serious public wrong of comparable gravity.

What the "against" case protects. ANALYSIS: Conceptual inflation erases the distinctive agency and intent involved in physical mass violence, and a concept that covers everything discriminates nothing.

Verdict. ANALYSIS: Call corruption mass violence only analogically and with the harm-chain shown; otherwise say structural harm, which asserts less and proves more.

Why this earns marks

Answer-writing focus: the double negative in the stem is a trap that invites reflexive agreement. The scoring move is to convert the question into a **test**: state the necessary conditions for violence, apply them one by one, and let the verdict record a partial fit. A script that agrees because both corruption and violence are harmful has supplied no test and cannot be distinguished from a script that guessed.

Exam-length execution - 10 marks, about 150 to 220 words: position one line; conditions two lines; the point-by-point test four lines; the "for" and "against" cases one line each; verdict one line. Compression plan: drop the "for" case, which the test already establishes, and keep the three concessions, which are what show the test being applied honestly.

- **Structure:** qualified position -> conditions of violence -> item-by-item test -> what each side establishes -> verdict with the safer term.
- **Doctrine:** structural harm; the requirement of a demonstrated harm-chain.

- **Evidence:** the five-condition test; the three failed conditions.
- **Distinction:** analogical extension against conceptual inflation.
- **Criticism:** the cost of inflation - a concept covering everything discriminates nothing.

How to improve this answer

Add the word "**foreseeably**" when stating the harm-chain, since foreseeability is what converts a chain of consequences into a moral attribution. If a further line is available, note that the analogy is strongest for diversion of **life-sustaining** resources and weakest for corruption in procurement of discretionary goods, which shows the test discriminating between cases rather than delivering a single verdict for all corruption.

Solved PYQ 3 · 2019 · Q4(c) · 15 marks

Question: Does capital punishment weaken the doctrine of social justice? Discuss.

Demand decoding

Element	Requirement
Directive	"Does X weaken Y? Discuss" - the relation must be specified before it is assessed, and a position taken
Core issue	Whether a penalty neutral in its abstract rule can be unjust in its distribution
Scope boundary	Fifteen marks: the mechanism of weakening, one objection with reply, one classified illustration, verdict
Key distinction	The abstract rule against its administration; equality of application as an independent condition
Non-negotiables	Condition 7 of responsible punishment; Duff's standing argument; deterrence handled as contested

Independent model answer

Position. ANALYSIS: It does, on one specific mechanism: not because its rule is unequal but because its **administration** is, and equal application is an independent condition of just punishment rather than an administrative detail.

The mechanism. FACT: Among the conditions a defensible punishment presupposes is equal application without status bias. A penalty administered through unequal defence, unequal investigation and unreviewed discretion tracks resources and status rather than culpability, and it does so while its abstract rule remains perfectly neutral.

ANALYSIS: Because the penalty is irreversible, the unequal outcome cannot be corrected later, so the defect is not merely present but permanent.

The proportionality point. FACT: Seriousness of offence is necessary but not sufficient for a proportionate sentence: culpability, mitigation, consistency and available alternatives all enter. Where unequal representation suppresses mitigation, the sentence is proportionate to what was proved rather than to what was true.

The standing argument. ANALYSIS: **Duff's** condition sharpens the claim: the legitimacy of punishment is conditional on the justice of the order that imposes it, so a polity that has denied a person the conditions of citizenship has weakened its authority to impose its gravest penalty upon him. ANALYSIS: This is a claim about authority, not about causation, and is therefore untouched by the reply that most deprived persons do not offend.

Objection. FACT: Unequal administration is an argument for reforming procedure, not for abolishing a penalty. **Reply.** ANALYSIS: For reversible penalties that is right; for an irreversible one the argument is stronger, since reform cannot retrieve the person already executed.

Classified illustration. FACT: **Bachan Singh* (1980)**, a Supreme Court judgment, retained the penalty with a "rarest of rare" limitation; the **Law Commission's Report No. 262 (2015)**, an advisory report, recommended abolition for ordinary crimes with specified exclusions. ANALYSIS: Legal facts, not proofs.

Verdict. ANALYSIS: It weakens social justice where administration is unequal and error irreversible - which is a condition, not a slogan.

Why this earns marks

Answer-writing focus: the stem contains a relation - "weakens" - and the marks lie in specifying the **mechanism** of weakening rather than in asserting that the penalty is unjust. Naming equal application as an independent condition, and then showing that irreversibility converts a remediable defect into a permanent one, gives the answer a spine that survives the obvious objection.

Exam-length execution - 15 marks, about 250 to 330 words: position two lines; mechanism four lines; proportionality two lines; standing three lines; objection and reply three lines; illustration two lines; verdict one line. Compression plan: drop the classified illustration and keep the standing argument, which is the harder point to answer.

- **Structure:** position -> mechanism -> proportionality -> standing -> objection and reply -> classified illustration -> conditional verdict.
- **Doctrine:** equal application as a condition of responsible punishment; proportionality between wrong, responsibility and sanction.
- **Evidence:** Duff on standing; the 1980 judgment and the 2015 advisory report, classified.
- **Distinction:** the abstract rule against its administration; reversible against irreversible defects.
- **Criticism:** the reform objection, conceded for reversible penalties and answered for irreversible ones.

How to improve this answer

State in one line that the argument does **not** claim that any particular system administers the penalty unequally, since the claim is conditional and the package characterises no jurisdiction. If more space is available, add that the standing argument and the equal-administration argument are independent: one attacks the authority of the punisher, the other the reliability of the distribution, and an answer that runs them together loses the ability to concede one while retaining the other.

Solved PYQ 4 · 2020 · Q3(c) · 15 marks

Question: Do you think that retributive theory of punishment is against human rights? Discuss.

Demand decoding

Element	Requirement
Directive	"Do you think... Discuss" - commitment is compulsory and must be qualified rather than balanced
Core issue	Whether desert commands infliction or constrains it
Scope boundary	Fifteen marks: the distinction, both readings assessed, the revenge contrast, one residue, verdict
Key distinction	Maximising against limiting retributivism; desert as a positive command against desert as a ceiling
Non-negotiables	Kant's "only"; the two prohibitions; the concession that retributivism is weakest at the general justifying aim

Independent model answer

Position. ANALYSIS: It depends entirely on which retributivism is meant, and the distinction is not a hedge: **maximising** retributivism is in tension with rights, while **limiting** retributivism is the strongest ally rights possess inside penal theory.

The doctrine. FACT: **Kant** holds that punishment must answer to the offender's culpable act and cannot be imposed merely to produce social utility, since treating a person **only** as an instrument of deterrence violates rational agency. FACT: **Hegel** holds that punishment negates the crime's wrongful claim and restores right while addressing the offender as a responsible agent rather than as a hazard.

The maximising reading, and why it is exposed. ANALYSIS: If desert is read as a positive command to inflict suffering, the theory can license degradation, can be invoked to justify escalation and has no internal resource for limiting the **form** of punishment. On that reading the objection lands.

The limiting reading, and what it forbids. FACT: Limiting retributivism claims two things only: no one may be punished without desert, and no penalty may exceed desert. Those are **prohibitions**, not commands, and they forbid precisely what rights-based objections most fear - conviction of the innocent for preventive gain, and escalation of severity beyond culpability.

Retribution is not revenge. FACT: Four axes separate them: the agent is a public impartial authority rather than the injured party; the measure is proportionate desert rather than the intensity of grievance; there is a ceiling fixed by culpability rather than none; and like cases are treated alike rather than personally.

Residue. ANALYSIS: Limiting retributivism does not close the general-justifying-aim gap: it explains why punishment may not exceed desert better than why the state must impose deserved suffering at all, and its cardinal ceiling must be anchored in dignity from outside desert.

Verdict. ANALYSIS: Not against human rights in its limiting form; in tension with them in its maximising form. A script that treats retributivism as one thing has answered neither.

Why this earns marks

Answer-writing focus: the stem is a trap for candidates who hold a single picture of retributivism. Drawing the limiting/maximising distinction in the first two lines reorganises the entire answer and converts a yes/no question into an adjudication. The two prohibitions are the mark-bearing sentences, because they show that the theory does positive work for rights rather than merely surviving the charge.

Exam-length execution - 15 marks, about 250 to 330 words: position two lines; Kant and Hegel three lines; maximising reading two lines; limiting reading three lines; revenge contrast three lines; residue two lines; verdict one line. Compression plan: shorten the revenge contrast to two axes - agent and ceiling - and keep the residue, which is what distinguishes a defence from an endorsement.

- **Structure:** position -> doctrine -> the exposed reading -> the defensible reading -> the revenge contrast -> residue -> verdict.
- **Doctrine:** desert as necessary condition and ceiling; punishment as the negation of the crime's wrongful claim.
- **Evidence:** Kant on treating a person only as an instrument; Hegel on the restoration of right.
- **Distinction:** maximising against limiting; retribution against revenge on four axes.
- **Criticism:** the general-justifying-aim gap, and the external anchor the cardinal ceiling requires.

How to improve this answer

Add the phrase "**prohibitions, not commands**" when introducing the limiting reading, since that formulation is what makes the rights point precise rather than assertive. If two more lines are available, note that the maximising reading is rarely defended in the literature, so the answer is not evading the question by preferring the limiting one - it is identifying which version is actually at issue.

Solved PYQ 5 · 2020 · Q4(c) · 15 marks

Question: How far do the social and political regimes condition corrupt practices in a nation-state? Discuss.

Demand decoding

Element	Requirement
Directive	"How far... Discuss" - a degree question; the answer must specify what is conditioned and what is not
Core issue	Whether regime type determines the existence of corruption or only its visibility, cost and form
Scope boundary	Fifteen marks: both regime types, the three conditioned variables, the inference error, verdict
Key distinction	Disclosure against incidence; regime type against institutional design
Non-negotiables	No regime and no country characterised; the residual variables named

Independent model answer

Position. ANALYSIS: Regimes condition the **visibility, the cost and the form** of corrupt practice far more than its **existence**, and the distinction is what a "how far" stem is asking for.

No regime is automatically immune. FACT: Autocracy may conceal corruption through weak scrutiny, so a low rate of disclosure is compatible with a high rate of incidence. **FACT:** Democracy may expose corruption through free information, competitive politics and periodic accountability, yet also generates its own risks - patronage networks, campaign finance and regulatory capture.

What regime type actually does. FACT: It affects three things: **information**, since scrutiny depends on what may be published and asked; **accountability**, since sanction depends on whether power can be removed or reviewed; and **competition**, since monopoly over decisions is what creates the rent in the first place.

The inference error to avoid. ANALYSIS: A regime that exposes more corruption is not thereby more corrupt. Confusing **disclosure** with **incidence** is the standard failure on this question, and it converts a measure of institutional openness into a measure of institutional decay.

The residual variables. FACT: Outcomes also depend on institutional design, social inequality and the norms of office. Two polities with the same regime type and different audit architectures, different levels of inequality and different professional ethos will not have the same experience of corruption. **ANALYSIS:** This is why "how far" is answered by *substantially but not decisively*.

The deeper reason. ANALYSIS: Corruption is an ethical act within a systemic ecology, and regime type is only one layer of that ecology. Structure fixes opportunity and price; it does not erase the agency of the person who acts.

Verdict. ANALYSIS: Regimes condition strongly but do not determine; the operative variables are monopoly, discretion and impunity, which cut across regime types.

Why this earns marks

Answer-writing focus: the phrase "how far" requires a **calibrated** answer, and calibration means naming what is conditioned and what is not. The disclosure/incidence correction is the single highest-value sentence available on this stem, because most scripts either praise democracy or condemn it without noticing that the evidence they are using is produced by the very institutions under assessment.

Exam-length execution - 15 marks, about 250 to 330 words: position two lines; the two regime types three lines; the three conditioned variables three lines; the inference error two lines; residual variables three lines; the ecology point two lines; verdict one line. Compression plan: drop the ecology paragraph and keep the disclosure/incidence correction, which is the sentence the stem rewards.

- **Structure:** calibrated position -> both regime types -> what regime type affects -> the inference error -> residual variables -> verdict.
- **Doctrine:** corruption as an ethical act within a systemic ecology; monopoly, discretion and impunity as the operative variables.
- **Evidence:** information, accountability and competition as the three channels of regime influence.
- **Distinction:** disclosure against incidence; regime type against institutional design.

- **Criticism:** the limits of regime-level explanation, and the persistence of agency within any structure.

How to improve this answer

Add one sentence stating that the answer characterises **no actual regime**, since the analysis is at the level of regime types and the package names no government. If a further line is available, note that the three channels are not independent - competition affects what information is generated, and information affects what accountability can reach - which explains why reforms in one channel often fail unless matched in the others.

Solved PYQ 6 · 2021 · Q2(b) · 15 marks

Question: Explain the reformatory theory of punishment and discuss whether this is in tune with human dignity.

Demand decoding

Element	Requirement
Directive	Two directives in one stem: "Explain" the theory, then "discuss" a compatibility claim; both must be served
Core issue	Whether a therapeutic rationale respects or overrides the person it acts upon
Scope boundary	Fifteen marks: doctrine, the four-step dignity argument, the paternalism objection, the four bounds, verdict
Key distinction	Reform against leniency; reform against incapacitation; addressing an agent against treating a patient
Non-negotiables	The four bounding conditions; the neglect-of-victims cost; the conditional verdict

Independent model answer

The theory, explained. FACT: Reformatory punishment views the offender as capable of moral development and social reintegration, and seeks to address ignorance, addiction, trauma, exclusion or distorted incentives **without denying responsibility**. Its central test is reintegration, and it is forward-looking.

What it is not. ANALYSIS: It is not leniency: it remains compatible with responsibility and with proportionate restraint. Nor is it incapacitation, which contains a source of risk rather than rebuilding an agent - the two treat the offender in opposite ways.

The dignity argument in four steps. FACT: Persons are more than their worst act; responsible agency can be impaired and rebuilt; a humane state should reduce future wrongdoing through capability rather than degradation; therefore punishment should preserve a route back to membership.

The objection. FACT: Compulsory "treatment" can pathologise dissent and become indefinite. A rationale measured by what the offender is judged to **need** rather than by what he **did** severs the link with proportionality, and an intervention that ends only when the person is judged corrected may never end at all.

The reply - and it is the answer to the stem. FACT: Rehabilitation must remain bounded by **proportionality**, by **consent where possible**, by **review** rather than open-ended intervention, and by **rights** retained throughout. Under those four conditions reform respects dignity by refusing to freeze a person in his worst act; without them it threatens dignity by treating him as an object of correction.

A further cost. ANALYSIS: Reform has nothing to say to the victim, whose wrong is not the offender's rehabilitation, which is why it functions best as a component of a mixed theory in which desert supplies the ceiling and condemnation supplies the public meaning.

Verdict. ANALYSIS: In tune with dignity conditionally, not unconditionally: the conditions are the answer, and an unqualified yes leaves the paternalism objection standing.

Why this earns marks

Answer-writing focus: the stem has two verbs and most scripts serve only the first. The explanation must be short and exact so that the discussion has room, and the discussion is scored on whether the paternalism objection is **answered** rather than acknowledged. The four bounding conditions are the answer, and they should be numbered so the examiner can see them.

Exam-length execution - 15 marks, about 250 to 330 words: explanation three lines; what it is not two lines; dignity argument three lines; objection three lines; the four bounds three lines; the victim cost two lines; verdict one line. Compression plan: drop the "what it is not" paragraph and keep the four bounds, which no other paragraph can replace.

- **Structure:** doctrine -> boundary against leniency and incapacitation -> dignity argument -> objection -> the four bounds -> residual cost -> conditional verdict.
- **Doctrine:** transformation of the capacities and conditions of lawful agency; reintegration as the central test.
- **Evidence:** the four-step dignity argument; the four bounding conditions.
- **Distinction:** reform against leniency and against incapacitation; addressing an agent against treating a patient.
- **Criticism:** paternalism, indefiniteness, and the neglect of victims.

How to improve this answer

Add a single line noting that **Foucault's** analysis supplies the sharpest reason to insist on the four bounds - a regime can intensify supervision while describing itself as rehabilitative - and place it in the critical rather than the justificatory part of the answer. If two more lines are available, state the hard case explicitly: the competent offender who refuses voluntary provision and whose desert ceiling expires while risk remains, which is where the bounded theory reaches its limit.

Solved PYQ 7 · 2022 · Q1(c) · 10 marks

Question: Is corruption a systemic issue or an ethical issue? Give your critical comments.

Demand decoding

Element	Requirement
Directive	"Is X or Y? Give your critical comments" - a disjunction offered for rejection, but the rejection must be argued
Core issue	Whether structure or agency explains corrupt conduct, and what each fails to explain
Scope boundary	Ten marks: both diagnoses, the two explanatory failures, the synthesis with its priority, one limit
Key distinction	Opportunity structure against agency; diagnosis against remedy
Non-negotiables	The reason the disjunction fails; a stated priority; no unexplained "both"

Independent model answer

Position. ANALYSIS: Neither: corruption is an **ethical act within a systemic ecology**, and the disjunction fails for a statable reason.

The two diagnoses. FACT: The **ethical** diagnosis traces corruption to greed and weak integrity, focuses on character and choice, and prescribes moral education and professional ethos. FACT: The **systemic** diagnosis traces it to opacity, monopoly, excessive discretion and impunity, focuses on incentives, and prescribes transparency, audit, competition and accountability.

Why the disjunction fails - the two explanatory residues. ANALYSIS: A purely ethical account cannot explain why populations of comparable character behave differently under different institutional designs. A purely structural account cannot explain why individuals occupying identical positions under identical incentives behave differently. Each account leaves precisely what the other explains.

The synthesis, with a priority. ANALYSIS: Structure fixes the **opportunity** and the **price** of the wrong; agency remains with whoever commits it. Because structure determines the opportunity set within which character operates, structural reform is prior **in the order of intervention**, while ethos is indispensable **in the residue** of judgment no rule eliminates.

Critical comment. ANALYSIS: The systemic limb faces a regress: auditors and rule-designers are themselves office-holders under the same incentives, so design checks discretion without removing the final layer of judgment.

Verdict. ANALYSIS: Structure first, ethos where structure cannot reach. "Both matter" is not a position; the two residues and the priority are.

Why this earns marks

Answer-writing focus: every script says "both". The mark is for the **reason** the disjunction is false, and the reason is the pair of explanatory residues - cross-institutional variation defeating pure ethics, cross-individual variation defeating pure structure. The priority ordering then converts an analytic synthesis into a usable recommendation, which is what "critical comments" asks for.

Exam-length execution - 10 marks, about 150 to 220 words: position one line; two diagnoses three lines; two residues three lines; synthesis with priority three lines; the regress two lines; verdict one line. Compression plan: drop the regress and keep the two residues, which are irreplaceable.

- **Structure:** position -> both diagnoses -> the two explanatory residues -> synthesis with priority -> the regress -> verdict.
- **Doctrine:** an ethical act within a systemic ecology; opportunity and price against agency.
- **Evidence:** the two variation arguments; the regress of designers and auditors.
- **Distinction:** diagnosis against remedy; order of intervention against indispensability.
- **Criticism:** design cannot close the residue of judgment, so the ethical limb is structural rather than decorative.

How to improve this answer

Add the phrase "**structure first, ethos where structure cannot reach**" as the closing formula, since it states the priority in six words and prevents the synthesis from reading as a hedge. If a further line is available, name the hardest case: where corruption is concentrated at the level that designs and enforces the rules, there is no external architect and the systemic remedy has no purchase.

Solved PYQ 8 · 2022 · Q1(e) · 10 marks

Question: What are the moral justifications of capital punishment? Discuss.

Demand decoding

Element	Requirement
Directive	"What are the moral justifications... Discuss" - the justifications must be expounded before being assessed
Core issue	Which arguments are genuinely moral justifications and what evidential status each carries
Scope boundary	Ten marks: the four justifications with their status, the strongest counter to each, a graded verdict
Key distinction	Moral justification against empirical claim; incapacitation against necessity
Non-negotiables	Deterrence marked as empirical; public affirmation identified as expressive; no unstated evidence claim

Independent model answer

Framing. ANALYSIS: The stem asks what the justifications **are**, so each must be stated at its strongest before being weighed - and each carries a different evidential status.

Retribution. FACT: Exceptionally grave culpable killing may deserve the gravest proportionate response. This is a genuine moral justification and, on a limiting reading, self-limiting: it licenses the penalty only at the extreme of culpability. ANALYSIS: Its difficulty is that desert explains a ceiling better than an obligation to impose.

Deterrence. CAUTION: Execution may deter potential offenders beyond life imprisonment. This is an **empirical** claim and cannot be assumed; comparative claims are contested, and a philosophical argument must state the uncertainty rather than resolve it by assertion.

Incapacitation. FACT: Execution permanently prevents reoffending. ANALYSIS: But secure imprisonment also incapacitates, so a protective rationale governed by **necessity** is not satisfied by the more final of two adequate means.

Public affirmation. ANALYSIS: The penalty may express the equal value of victims and condemnation of atrocity. This is an **expressive** argument in Feinberg's sense and must be assessed as one: does execution express victims' equal worth, or that the state may kill a person under its control?

Verdict. ANALYSIS: Only retribution and public affirmation are moral justifications proper; deterrence is an empirical claim awaiting evidence, and incapacitation fails necessity once secure confinement exists. The case is narrower than it appears.

Why this earns marks

Answer-writing focus: an "explain the justifications" stem is scored on **exposition plus adjudication**, in that order. Sorting the four arguments by evidential status - genuine moral justification, contested empirical claim, protective rationale governed by necessity, expressive claim - is the move that separates a strong script from a list, and it does so without smuggling in the abolitionist case.

Exam-length execution - 10 marks, about 150 to 220 words: framing one line; four justifications two lines each with status; verdict one line. Compression plan: shorten public affirmation to one line and keep the necessity point on incapacitation, which is the sharpest single move available.

- **Structure:** framing -> four justifications with evidential status -> graded verdict.
- **Doctrine:** desert at the extreme of culpability; necessity as the test of protective rationales.
- **Evidence:** Feinberg's expressive function applied to the affirmation argument.
- **Distinction:** moral justification against empirical claim; permanent prevention against required means.
- **Criticism:** the general-justifying-aim gap in retribution; the availability of secure alternatives.

How to improve this answer

Add one clause noting that the **question asked for justifications, not for a verdict on abolition**, and that the graded assessment is therefore internal to the exposition rather than an answer to a different question. If two more lines are available, note that the affirmation argument can be turned against the penalty, since an expressive account also explains why a wrongful execution inflicts a condemnation that can never be withdrawn.

Solved PYQ 9 · 2023 · Q4(a) · 20 marks

Question: "Severity of punishment should be proportionate to the seriousness of the crime." Do you agree that while punishing a juvenile, the nature of the crime should be considered? Justify your answer.

Demand decoding

Element	Requirement
Directive	A quoted principle plus "Do you agree... Justify" - commitment compulsory, and the quoted principle must be analysed, not merely endorsed
Core issue	Whether the nature of the crime is conclusive, relevant or irrelevant when the offender is a juvenile
Scope boundary	Twenty marks: the two proportionality dimensions, the three-term relation, the five factors, objection and reply, verdict
Key distinction	Ordinal against cardinal proportionality; integration against balancing; relevant against conclusive
Non-negotiables	The three-term relation; procedural reliability as an independent factor; no denial of juvenile responsibility

Independent model answer

Position. ANALYSIS: I agree that the nature of the crime should be **considered** and deny that it can be **conclusive** - reaching that position by accepting the quoted principle rather than qualifying it.

Why the quoted principle does not settle the case. FACT: Proportionality holds between **wrong, responsibility and sanction** - three terms, not two. Seriousness of harm is one input; the responsibility of the person who caused it is the other. An inference from gravity of offence straight to severity of sentence treats a three-term relation as though it had two terms.

The two dimensions. FACT: **Ordinal** proportionality ranks offences against one another; **cardinal** proportionality fixes how severe the scale may be. Desert supplies the ranking, not the anchor: a doubled scale stays perfectly ranked, so the ceiling must come from constraints on what may be done to a person at all.

The five factors in juvenile assessment. FACT: Seriousness of harm; intention and understanding; developmental capacity and susceptibility to influence; prospects of reform; and procedural reliability. The first is offence-centred, the third and fourth offender-centred, the second joins them, the fifth is institutional: where the accused is young, the reliability of confession, identification and comprehension is systematically weaker, and a sentence resting on unreliable findings is proportionate to a fiction.

Integration, not balancing. ANALYSIS: Reduced capacity is not a counterweight placed against seriousness; it is an input into the determination of culpability, which is itself one of the terms by which proportionality is measured.

Adjusting the sentence is therefore an **application** of the quoted principle, not an exception to it.

Objection. FACT: If reduced capacity lowers culpability, the reasoning extends to adults shaped by deprivation, and criminal responsibility dissolves. **Reply.** ANALYSIS: Developmental incompleteness is **universal, temporary and predictable**, whereas adverse circumstance is particular, variable and contested; that supports a general rule for juveniles and case-by-case mitigation for adults. **Residue.** CAUTION: The reply supports graded rather than threshold treatment, so any age line is a practical compromise the philosophy does not itself generate.

What the argument does not license. WRONG: It does not deny juvenile responsibility, since developing agency is reduced and not absent, and the ordinary standard of understanding and adequate control still applies. WRONG: Nor does it erase harm, which remains factor one.

Verdict. ANALYSIS: The nature of the crime is relevant and never conclusive: consider it as the first of five factors, integrate the offence-centred and offender-centred perspectives, and let severity track wrong **and** responsibility together.

Why this earns marks

Answer-writing focus: the stem is constructed so that agreeing with the quotation appears to commit the candidate to severity. The scoring move is to accept the quotation and show that it does not license the inference, which requires the three-term relation to be stated early. Procedural reliability is the factor most scripts drop, and including it demonstrates that five distinct considerations have been distinguished rather than two.

Exam-length execution - 20 marks, about 330 to 400 words: position two lines; the three-term relation three lines; the two dimensions three lines; the five factors five lines; integration three lines; objection, reply and residue four lines; the two disclaimers two lines; verdict two lines. Compression plan: shorten the ordinal/cardinal paragraph and keep the five factors and the integration point, which carry the answer.

- **Structure:** position -> why the quoted principle does not settle it -> two dimensions -> five factors -> integration -> objection, reply, residue -> disclaimers -> verdict.
- **Doctrine:** proportionality between wrong, responsibility and sanction; ordinal ranking under a cardinal ceiling.
- **Evidence:** the five-factor grid; the systematic weakness of procedural reliability for young accused.
- **Distinction:** integration against balancing; relevant against conclusive.
- **Criticism:** the extension objection, answered by universality, temporariness and predictability, with a residue about thresholds.

How to improve this answer

Name the inference being blocked in a single phrase - "**the two-term inference**" - because giving the error a name makes the whole argument portable to any proportionality stem. If more space is available, add that the cardinal anchor's external source explains why even a correct ranking cannot justify a severe juvenile sentence: the ranking says only that this offence is graver than that one, and never how grave the scale itself may be.

Solved PYQ 10 · 2024 · Q3(b) · 15 marks

Question: On what grounds would you accept or reject the idea of capital punishment as an effective deterrent? Discuss.

Demand decoding

Element	Requirement
Directive	"On what grounds would you accept or reject... Discuss" - the grounds must be named before the position is taken
Core issue	What kind of claim deterrent effectiveness is, and what follows under uncertainty
Scope boundary	Fifteen marks: the four presuppositions, the evidential status, the asymmetry of burden, the effectiveness/permisibility separation, verdict
Key distinction	Empirical effectiveness against moral permisibility; certainty against severity
Non-negotiables	Deterrence marked as contested; no assertion that it is proved or disproved; the burden argument

Independent model answer

Framing the grounds. ANALYSIS: The claim that capital punishment deters more than life imprisonment is an **empirical** proposition, and it may be accepted or rejected only on grounds appropriate to that kind of claim. Naming the kind of claim is the first ground.

The four presuppositions of any deterrent argument. FACT: That persons respond to perceived costs; that sanctions are known and sufficiently certain; that preventive benefits exceed collateral harms; and that gentler alternatives are inadequate. ANALYSIS: Acceptance would require all four to hold **for the marginal step from life imprisonment to execution**, the only step at issue.

Grounds for scepticism about presupposition 1. ANALYSIS: The offences for which the penalty is characteristically reserved include those committed under extreme passion, intoxication, coercion or ideological commitment - precisely the categories in which responsiveness to perceived cost is weakest.

Grounds for scepticism about presupposition 2. FACT: **Beccaria's** calibration point is decisive: certainty and promptness matter more than severity. Where detection and conviction are uncertain, raising the maximum penalty operates on the variable that matters least.

Grounds for scepticism about presupposition 4. ANALYSIS: Secure imprisonment is a less harmful alternative that achieves incapacitation, so the marginal deterrent gain must be demonstrated rather than assumed.

The asymmetry of burden under uncertainty. ANALYSIS: Where a penalty is severe and irreversible, the burden of demonstrating the preventive gain lies on the party proposing it, because a mistaken judgement cannot be corrected afterwards. This is a ground for rejection that does not require the empirical question to be settled.

The separation that must be stated. FACT: Effectiveness and permisibility are independent: an effective deterrent may still violate rights, and an ineffective one loses its utilitarian basis. CAUTION: Comparative claims are empirically contested and this answer asserts neither result.

Verdict. ANALYSIS: I reject the deterrent case - not because deterrence has been disproved, which would overstate the evidence, but because three of its four presuppositions are doubtful at the margin at issue and the burden of proof lies with the party proposing an irreversible penalty.

Why this earns marks

Answer-writing focus: the stem asks for **grounds**, so the answer must be organised by grounds rather than by conclusion. Working through the presuppositions one by one, and confining the question to the **marginal step** from life imprisonment to execution, prevents the common error of arguing about whether punishment deters at all - which is not what the stem asks.

Exam-length execution - 15 marks, about 250 to 330 words: framing two lines; four presuppositions three lines; three sceptical grounds five lines; the burden asymmetry three lines; the separation two lines; verdict two lines. Compression plan: merge the scepticism about presuppositions 1 and 4 and keep the burden asymmetry, which is the ground that survives empirical uncertainty.

- **Structure:** name the kind of claim -> the four presuppositions -> grounds for scepticism about three of them -> the burden asymmetry -> effectiveness against permissibility -> verdict.
- **Doctrine:** deterrence as expected reduction of future harm; the marginal-step framing.
- **Evidence:** Beccaria on certainty and promptness; the categories of offender least responsive to perceived cost.
- **Distinction:** empirical effectiveness against moral permissibility; the whole penalty against the marginal step.
- **Criticism:** the honest refusal to claim that deterrence has been disproved.

How to improve this answer

Insert the phrase "**the marginal step**" early, because the entire question is about whether execution adds deterrent value over secure life imprisonment, and scripts that argue about punishment in general have answered a different stem. If two more lines are available, note that accepting the deterrent case would still leave the rights objection standing, which is what the effectiveness/permissibility separation is for.

Solved PYQ 11 · 2025 · Q1(a) · 10 marks

Question: "Corrupt practices reveal an inherent tension between particularistic and universalistic normative standards." Do you agree with this statement? Give reasons and justification for your answer.

Demand decoding

Element	Requirement
Directive	"Do you agree... Give reasons and justification" - commitment compulsory, and the agreement must be graded rather than flat
Core issue	What kind of tension corrupt practice reveals, and whether it is a clash of moralities or of domains
Scope boundary	Ten marks: both standards, the four-step argument, the characterisation, the remedy, one limit
Key distinction	Particular duties as genuine against particular duties as bias; domains against rival moralities
Non-negotiables	The characterisation as a category error of role; role boundaries and recusal; the word "inherent" addressed

Independent model answer

Position. ANALYSIS: I agree, and the weight falls on "**inherent**": the tension is ineliminable because it lies between **domains**, not between rival moralities.

The two standards. FACT: **Particularistic** norms weight family, caste, friendship or patronage; **universalistic** norms require impartial application of public criteria.

Why particular duties are genuine. ANALYSIS: This step makes the tension inherent. Personal relations generate **real duties**, not bias to be suppressed; were they mere temptation there would be no tension, only weakness of will.

The four-step argument. FACT: Personal relations generate genuine duties; office is entrusted for a specified common purpose; discharging private loyalty through office costs unrepresented citizens; **corruption occurs when a legitimate loyalty is acted upon in a role governed by universal standards.**

The characterisation. ANALYSIS: Corruption is therefore a **category error of role executed for advantage** - a valid norm imported into a domain that excludes it.

The remedy that follows. FACT: Not the abolition of personal loyalty but the definition of role boundaries, conflicts of interest and recusal - role-differentiation rather than the suppression of duty.

Limit. CAUTION: Boundaries work cleanly for discrete decisions and poorly for pervasive influence, informal networks and agenda-shaping, where recusal has nothing to attach to.

Verdict. ANALYSIS: I agree: the tension is inherent because both standards are valid in their own domains, and is managed by boundaries, not dissolved by exhortation.

Why this earns marks

Answer-writing focus: a *do you agree* stem is scored on the **grading** of the position rather than its direction.

Agreeing is easy; explaining why the tension is **inherent** - because particular duties are genuine and both standards are domain-valid - is what converts assent into argument. The category-error characterisation is a single phrase that carries the whole analysis.

Exam-length execution - 10 marks, about 150 to 220 words: position one line; two standards one line; genuineness of particular duties two lines; four-step argument three lines; characterisation one line; remedy two lines; limit one line; verdict one line. Compression plan: drop Aristotle and keep the genuineness step, without which "inherent" cannot be justified.

- **Structure:** graded agreement -> the two standards -> why particular duties are genuine -> four-step argument -> characterisation -> remedy -> limit -> verdict.
- **Doctrine:** entrusted office and its specified common purpose; role-differentiation.
- **Evidence:** the four-step argument; Aristotle on particular bonds, bounded to one point.
- **Distinction:** domains against rival moralities; boundary against suppression.
- **Criticism:** the pervasive-influence cases where recusal has no purchase.

How to improve this answer

Make the word "**inherent**" explicit early, since the statement quoted uses it and the grading of the agreement turns on it. If a further line is available, add that the genuineness of particular duties also explains why anti-corruption reform framed as an attack on family and community obligation tends to fail: it asks people to deny duties they correctly believe they have, instead of locating those duties outside the office.

Solved PYQ 12 · 2025 · Q3(a) · 20 marks

Question: Can one's right to life be absolute? Answer with reference to the idea of Capital Punishment.

Demand decoding

Element	Requirement
Directive	A conceptual question with a mandatory application - the right must be analysed and the penalty addressed
Core issue	Whether accepted limits on the right to life extend to killing a person already in custody
Scope boundary	Twenty marks: the absoluteness question, the custody distinction, desert and deterrence, fallibility, verdict
Key distinction	Fundamental against exceptionless; present unjust threat against post-adjudication control
Non-negotiables	The necessity-failure formulation; classified Indian illustrations; no unstated empirical claim

Independent model answer

Position. ANALYSIS: The right to life is **fundamental without being exceptionless**, and the case against capital punishment does not need it to be exceptionless: the penalty fails on **necessity**, not on absoluteness.

Why absoluteness is the wrong ground. FACT: Even determined defenders of the right accept limits: proportionate force in self-defence and necessity may take life. A right can be fundamental - requiring the strongest justification for any limit - without being exceptionless. **ANALYSIS:** Asserting absoluteness chooses the weakest premise and is refuted by one counter-example.

The real question, and the custody distinction. FACT: The question is whether **custodial killing** satisfies the same conditions. It does not. Immediate defence answers a **present unjust threat** with no alternative available in time; execution **follows custody and adjudication**, and less final means of incapacitation exist. Necessity is satisfied in the first case and absent in the second, so defensive limits on the right to life do **not** justify capital punishment.

The desert argument, taken seriously. FACT: Exceptionally grave culpable killing may deserve the gravest proportionate response - the strongest retentionist ground. ANALYSIS: But desert operates at liability and severity, not at the general justifying aim, and must be **administered** through a fallible, unequally resourced process whose errors here cannot be corrected.

The deterrence argument. CAUTION: Comparative deterrent effect is contested and cannot be assumed; under uncertainty the burden lies on whoever proposes the irreversible penalty.

The fallibility chain. FACT: Wrongful execution cannot be repaired; unequal defence, bias and discretion undermine proportionality; execution forecloses moral transformation. ANALYSIS: Feinberg sharpens the first: the condemnation carried by a wrongful conviction cannot be refunded, and cannot be withdrawn from someone no longer alive to be vindicated.

Classified illustrations. FACT: **Bachan Singh* (1980)** is a Supreme Court **judgment** retaining the penalty under a "rarest of rare" limitation; **Law Commission Report No. 262 (2015)** is an **advisory report** recommending abolition for ordinary crimes with terrorism-related and war exclusions. ANALYSIS: A legal compromise, not a moral settlement.

Objection. FACT: If necessity were required for punishment generally, imprisonment would fail it too. **Reply.** ANALYSIS: Necessity governs only **protective** rationales; where the justification is desert, the argument shifts to the reliability chain, which attacks the conditions under which desert can be tracked rather than desert itself.

Verdict. ANALYSIS: Not absolute - and it does not need to be. **Deliberate irreversible killing after control is established fails necessity under conditions of fallibility and alternative protection.**

Why this earns marks

Answer-writing focus: the stem invites the weakest possible answer, which is to assert that rights are absolute. Conceding non-absoluteness in the first line and relocating the argument to necessity is what makes the answer strong, and the custody distinction is the sentence that does the work. The two-chain structure - necessity against protective rationales, reliability against desert rationales - pre-empts the obvious objection before it is made.

Exam-length execution - 20 marks, about 330 to 400 words: position two lines; why absoluteness is the wrong ground three lines; custody distinction four lines; desert three lines; deterrence two lines; fallibility chain four lines; illustrations two lines; objection and reply three lines; verdict two lines. Compression plan: drop the classified illustrations and keep the custody distinction and the necessity-failure formulation.

- **Structure:** position -> absoluteness rejected as a ground -> custody distinction -> desert -> deterrence -> fallibility chain -> classified illustrations -> objection and reply -> verdict.
- **Doctrine:** fundamental without exceptionless; necessity as the test of protective rationales.
- **Evidence:** the custody distinction; Feinberg on unrefundable condemnation; the 1980 judgment and the 2015 advisory report, classified.
- **Distinction:** present unjust threat against post-adjudication control; protective rationale against desert rationale.
- **Criticism:** the imprisonment objection, answered by confining necessity to protective justifications.

How to improve this answer

State the verdict formula **verbatim** in the closing line, because its precision is what distinguishes it from the slogan it replaces. If more space is available, concede explicitly that a pure desert retentionist who accepts non-necessity and claims sufficient process reliability has not been refuted but contradicted on a question of institutional fact - a concession that strengthens the answer by showing exactly what philosophy delivers and what it does not.

Six original questions in the paper's own idiom - two at 10 marks, two at 15 and two at 20 - each solved to the same standard as the previous-year parts above. None reproduces an owned stem; each targets a route the corpus has tested indirectly or is likely to test again. **Genocide is deliberately represented here**, since it is printed in the clause and carries no owned part in the 2018-2025 cycle.

ORIGINAL MAINS PRACTICE WITH MODEL SOLUTIONS

Original 1 · 10 marks

Question: Distinguish between a justification and an excuse. Why does the distinction matter?

Independent model answer

The distinction. FACT: A **justification** claims the act was **permissible in the circumstances** - necessary proportionate defence against an unjust threat. An **excuse** concedes the act was **wrong** and denies or reduces blame because control, knowledge or competent agency was impaired - duress, or serious incapacity.

What each denies. ANALYSIS: A justification denies **wrongfulness**; an excuse denies **answerability**. They attack different links in the chain that runs from prohibited conduct to attributed blame.

Why it matters - three consequences. FACT: For third parties: those who assist a justified act may share its justification, whereas an excused wrong remains a wrong, so resistance stays permissible. FACT: For the norm: an excuse leaves the prohibition intact, while a justification marks a case the prohibition never covered. ANALYSIS: For sentencing: an excuse admits of degree and supports mitigation; a justification, if upheld, is complete.

The connection to this clause. ANALYSIS: The distinction does substantive work later. "Following orders" is an excuse and fails where the order is manifestly criminal; deterministic explanation is partial excuse and never justification; Duff's standing argument is neither, attacking the punisher's authority rather than the defendant's conduct.

Verdict. ANALYSIS: The distinction matters because it identifies **what is being contested** - the wrongfulness of an act, or the answerability of an agent - and answers that merge the two cannot say which.

Why this earns marks

Answer-writing focus: a "distinguish and say why it matters" stem needs consequences, not two definitions. The third-party consequence is the sharpest, because it shows the distinction doing work outside the defendant's own case.

Exam-length execution - 10 marks, about 150 to 220 words: distinction three lines; what each denies one line; three consequences four lines; connection two lines; verdict one line.

- **Structure:** definitions -> what each denies -> three consequences -> application inside the clause -> verdict.
- **Doctrine:** the four-element attribution ladder and the two defences that answer it.
- **Evidence:** proportionate defence as justification; duress and incapacity as excuse.
- **Distinction:** wrongfulness against answerability.
- **Criticism:** the standing argument fits neither category, which shows the taxonomy is not exhaustive.

How to improve this answer

Add that the distinction also explains why **degrees** behave differently: excuses come in degrees while justifications do not, which is why partial excuse is intelligible and partial justification is not. If a further line is available, note that mistaken belief in justifying circumstances is treated as an excuse rather than a justification, which shows the boundary being applied rather than merely stated.

Original 2 · 10 marks

Question: "Genocide is simply mass murder on a large scale." Comment.

Independent model answer

Position. ANALYSIS: False - and its falsity is why the concept exists.

What the concept adds. FACT: Under the **Genocide Convention (1948)**, genocide is specified acts committed with **intent to destroy, in whole or in part, a national, ethnical, racial or religious group, as such**. The defining element is intent against the **group**, not the toll.

Lemkin's conception. FACT: **Lemkin**, who coined the term in **Axis Rule in Occupied Europe* (1944)**, did not define genocide as mass killing. He conceived it as a **coordinated plan of different actions** destroying the essential foundations of a group's life - institutions, culture, language, religion, economy, security, liberty, health, dignity - killing being **one method among several**.

Why the wrong is irreducible. FACT: A group's existence is sustained by its institutions, language and transmission as well as by its members' lives, so those foundations can be destroyed even where many members survive. Losing a **form of shared life** is not captured by counting murders.

Two qualifications. ANALYSIS: The Convention is **narrower** than Lemkin and **omits political groups**. ANALYSIS: Its presupposition - that groups have a morally significant existence not exhausted by members' interests - needs argument, since individualists deny it.

Verdict. ANALYSIS: Not scale but **specific intent against a group as such** - the distinction neighbouring categories exist to preserve.

Why this earns marks

Answer-writing focus: a "comment" stem on a false slogan is scored on the **replacement** offered. Naming the specific-intent requirement and the irreducibility argument replaces the slogan with a criterion, and the two qualifications show that the criterion is being used carefully rather than enthusiastically.

Exam-length execution - 10 marks, about 150 to 220 words: position one line; the Convention definition two lines; Lemkin three lines; irreducibility three lines; two qualifications two lines; verdict one line.

- **Structure:** rejection -> the legal definition -> Lemkin's broader conception -> why the wrong is irreducible -> qualifications -> verdict.
- **Doctrine:** specific intent to destroy a group as such; destruction of the foundations of a group's life.
- **Evidence:** the 1948 Convention; Lemkin's 1944 work.
- **Distinction:** scale against intent; the Convention's text against Lemkin's conception.
- **Criticism:** the contested presupposition about group existence.

How to improve this answer

Add the phrase "**killing is one method among several**" when stating Lemkin's conception, since it is the clause that most directly refutes the quoted slogan. If two more lines are available, name the neighbouring categories - crimes against humanity, distinguished by a widespread or systematic attack on a civilian population - to show that rejecting the slogan does not leave large-scale atrocity unnamed.

Original 3 · 15 marks

Question: Examine whether restorative justice can replace retributive punishment for serious crimes.

Independent model answer

Position. ANALYSIS: It cannot replace it for serious crimes; it can **supplement** it, and its applicability is conditional rather than general.

What restorative justice claims. FACT: It reconceives crime as a violation of persons and relationships rather than an offence against the state, and asks who was hurt, what they need and whose obligation it is to repair. The victim becomes a participant with standing rather than a prosecution witness, and the offender an active participant expected to acknowledge and repair rather than an object incentivised to deny.

The mechanism. FACT: **Braithwaite** supplies it: **stigmatising** shaming condemns the person, severs bonds, offers no route back and is criminogenic; **reintegrative** shaming condemns the act within a continuing relationship of care and is terminated by reacceptance.

Where it sits on the three questions. ANALYSIS: Its aim is repair; its liability condition still requires an admitted or proved voluntary wrong, so it does not bypass guilt; and its measure of outcome is what repair requires rather than what desert permits - which is exactly where the proportionality objection lands.

Three objections and their replies. FACT: **Proportionality:** outcomes would vary with the victim's temperament, so like cases are not treated alike; defensible schemes therefore operate inside limits set by desert - conceding that the retributive framework remains the outer constraint. ANALYSIS: **Power imbalance:** face-to-face process can re-traumatise or coerce where parties are unequal; this cannot be fully answered, so the practice is **conditionally appropriate**, requiring voluntariness, prior safety, skilled facilitation and the screening out of entrenched domination. FACT: **Public wrong:** if crime is only private harm, denunciation disappears; Feinberg and Duff answer this, since some wrongs must be publicly named.

The presupposition that limits it. ANALYSIS: The offender must value inclusion and the community must be willing to reaccept - conditions that fail precisely for already-excluded groups.

Verdict. ANALYSIS: Restoration within desert-set limits, supplementing rather than replacing authoritative condemnation; the layered position is that desert fixes the limits, condemnation supplies the meaning, communication supplies the address and restoration supplies the repair.

Why this earns marks

Answer-writing focus: "examine whether X can replace Y" is scored on whether the **conditions of replacement** are specified. Mapping restoration onto the three justifying questions locates the failure precisely at severity, and the three objections then follow in order rather than as a list.

Exam-length execution - 15 marks, about 250 to 330 words: position one line; the claim four lines; mechanism two lines; grid two lines; three objections and replies six lines; presupposition two lines; verdict two lines.

- **Structure:** position -> doctrine -> mechanism -> the three-question mapping -> objections and replies -> presupposition -> layered verdict.
- **Doctrine:** crime as harm to persons and relationships; reintegrative against stigmatising shaming.
- **Evidence:** Braithwaite's mechanism; Feinberg and Duff on the public wrong.
- **Distinction:** supplement against replacement; desert-bounded band against unbounded restoration.
- **Criticism:** the power-imbalance objection, conceded rather than answered.

How to improve this answer

State the **desert-bounded band** in one clause - restoration determines the outcome *within* the proportionate range - because it is what converts "supplement" from a compromise into a structure. If two more lines are available, add the uncomfortable distributional point: restorative justice is strongest where social bonds are intact and weakest where they have been destroyed, so it is least available to those whom conventional process treats worst.

Original 4 · 15 marks

Question: "Guilt is individual; responsibility admits of collective forms." Critically examine this claim in the context of mass violence.

Independent model answer

Position. ANALYSIS: The claim is correct and is the most important control in this area, because "collective responsibility" conceals at least five different claims.

The five kinds, distinguished. FACT: **Criminal guilt** - this person planned, ordered, incited or committed; defensible, and attaches to individuals only. FACT: **Organisational liability** - a body with decision procedures and a chain of command answers for what it decided; defensible where the body has genuine agency. ANALYSIS: **Political responsibility** - members of a polity bear responsibility for what is done in their name and by their institutions; partly defensible, grounding reparation, memory and reform, never guilt. ANALYSIS: **Moral responsibility for omission** - bystanders who could have acted at acceptable cost bear some responsibility; defensible but graded by knowledge, capacity and risk. WRONG: **Metaphysical or inherited guilt** - guilt by ancestry or membership; rejected, because it is the very logic that generates atrocity.

Why differentiation is required. FACT: Mass violence fragments agency through dehumanisation, moral exclusion, diffusion of responsibility, bureaucratic routine and suppressed dissent. FACT: Arendt's account of wrongdoing performed through cliché, careerism and failure of judgment describes that setting exactly - but concerns the **psychology of perpetration**, not the **degree of guilt**, and must be stated so, or it reads as an excuse.

Critical examination. FACT: **Objection:** political responsibility is incoherent, since citizens who opposed the policy, who were children, or who had no effective voice cannot owe reparation merely by membership. ANALYSIS: **Reply:** the category is grounded in membership of an **ongoing institutional order** whose acts were done in the members' name and whose liabilities they inherit - a structure familiar from corporate and successor-state obligation - and it yields duties to repair, remember and reform rather than blame. CAUTION: **Residue:** the reply is weakest for those who had no effective voice, on whom the duty may fall most heavily despite their being least able to prevent the wrong.

Verdict. ANALYSIS: Guilt individual, responsibility collective in form and graded in degree; assigning guilt to a community as such reproduces the perpetrator's own reasoning.

Why this earns marks

Answer-writing focus: "critically examine" means the objection-reply layer **is** the answer. Setting out the five kinds first makes the objection precise, because it can then be aimed at one kind rather than at the phrase.

Exam-length execution - 15 marks, about 250 to 330 words: position one line; five kinds six lines; why differentiation is required three lines; objection, reply and residue five lines; verdict two lines.

- **Structure:** position -> the five kinds -> the mechanisms that require differentiation -> objection, reply, residue -> verdict.
- **Doctrine:** differentiated responsibility by role, knowledge, capacity and contribution.
- **Evidence:** Arendt on routinised participation, with the psychology/guilt control.
- **Distinction:** guilt against responsibility; political responsibility against inherited guilt.
- **Criticism:** the no-effective-voice residue, conceded rather than concealed.

How to improve this answer

Name the rejected fifth category **explicitly as the perpetrator's own logic**, since that sentence is what makes the rejection an argument rather than a preference. If two more lines are available, add that the differentiated view is **factually demanding** and may be unavailable where evidence has been destroyed, which is an honest limit rather than a concession.

Original 5 · 20 marks

Question: Critically evaluate the claim that a theory of punishment must be either backward-looking or forward-looking.

Independent model answer

Position. ANALYSIS: The claim is false, and its falsity is established not by compromise but by showing that the two orientations answer **different questions**.

Why the dilemma seems compelling. FACT: Backward-looking theories justify punishment by what was done: desert for culpable wrongdoing, with proportionality as the measure. Forward-looking theories justify it by what will follow: prevention, protection, restoration of security. Since an act is either past or future in its reference, the orientations look exhaustive and exclusive.

The move that dissolves it. FACT: Following **Hart's** separation, three questions must be distinguished: **Q1**, why the institution of punishment should exist at all; **Q2**, whom we may punish and on what condition; **Q3**, how much punishment is permissible. Forward-looking prevention answers Q1 plausibly; backward-looking desert answers Q2 and Q3 without disaster. The dilemma arises only when one answer is demanded for all three.

Why the separation is not ad hoc. ANALYSIS: It is ordinary institutional reasoning: the aims of a promise-keeping practice differ from the rules determining who is bound by a particular promise. An institution may be justified by its general benefit while its individual applications are governed by an independent principle of fairness.

What each pure theory then loses. FACT: Pure retribution struggles at Q1, since desert explains why suffering is merited without explaining why the **state** must administer it. FACT: Pure deterrence fails at Q2, permitting the punishment of an innocent person where the preventive yield is large, and at Q3, permitting escalation without ceiling.

The resulting position, and its teeth. ANALYSIS: A two-level theory - consequentialist in aim, retributivist in constraint - generates three testable prohibitions: no punishment of the known innocent whatever the preventive gain; no penalty beyond the desert ceiling whatever the deterrent gain; and no abolition of the institution merely because desert cannot ground state administration.

Critical evaluation. FACT: **Objection:** the levels are unstable, since where punishment within the ceiling yields no preventive benefit the aim gives no reason to punish while the constraint permits it. ANALYSIS: **Reply:** the aim justifies the **rule-governed practice** rather than each application, and a practice making exceptions whenever marginal gain was absent would not be the practice whose benefit was invoked. CAUTION: **Residue:** this commits the theory to rule-level evaluation and its standing difficulty.

Verdict. ANALYSIS: Neither exclusively: the orientations are answers to different questions, and a structured mixed theory is a third position with its own presupposition, its own prohibitions and its own costs.

Why this earns marks

Answer-writing focus: "critically evaluate" a dilemma is scored on whether the dilemma is **dissolved** rather than split. The three-question separation does that, and the three prohibitions answer the standing charge that mixed theories are evasions.

Exam-length execution - 20 marks, about 330 to 400 words: position two lines; why the dilemma seems compelling three lines; the dissolving move four lines; why it is not ad hoc two lines; what each pure theory loses three lines; the prohibitions three lines; objection, reply, residue four lines; verdict two lines.

- **Structure:** position -> the apparent dilemma -> the three-question separation -> the institutional analogy -> the losses of each pure theory -> the prohibitions -> objection, reply, residue -> verdict.
- **Doctrine:** general justifying aim, distribution and severity; side-constraints.
- **Evidence:** Hart's separation; the promise-keeping analogy.
- **Distinction:** justification of a practice against justification of an application.
- **Criticism:** rule-level evaluation and its inherited difficulty.

How to improve this answer

Name the presupposition a **pure retributivist denies** - that institutional aim and application principle can come apart without incoherence - because stating it shows the mixed theory to be a substantive commitment rather than a neutral middle. If more space is available, note that the same separation reorganises every applied question in the clause, from juvenile sentencing to the death penalty.

Original 6 · 20 marks

Question: "Punishment is a constrained practice, not a free exercise of state power." Discuss with reference to corruption, mass violence and capital punishment.

Independent model answer

Thesis. ANALYSIS: Punishment is legitimate only as a **constrained** practice: its aim may be forward-looking, but its application is bound by legality, culpability, proportionality, dignity, procedure, equality and a preserved route back to membership. The three applications test those constraints differently.

The constraints, stated. FACT: A defensible punishment presupposes a public law known in advance; a voluntary act or relevant omission; proportionate culpability; fair procedure and reliable proof; a competent and impartial authority; proportionality between wrong, responsibility and sanction; and equal application without status bias. ANALYSIS: Each blocks a specific abuse, and naming the abuse converts the list into an argument.

Corruption - pressure on the concept of a public wrong. ANALYSIS: Victims are diffuse and no assault occurs, so the harm-based case for criminalisation is weak. The constraint holds because the wrong is the betrayal of **entrusted office** and the displacement of public rules by private access - wrongs surviving where no measurable loss is shown. ANALYSIS: Remedy follows diagnosis: attack monopoly, discretion and impunity, with certainty of detection as the operative lever.

Mass violence - pressure on attribution. FACT: Division of labour, bureaucratic routine and diffused responsibility fragment agency, tempting an answer either to acquit everyone below the leadership or to convict a community. The constraints forbid both: **guilt is individual**, while responsibility admits collective forms - organisational liability, political responsibility grounding reparation, memory and reform, and graded responsibility for omission - inherited guilt being rejected outright. ANALYSIS: Arendt's thesis is psychology, not a reduction of guilt.

Capital punishment - pressure on every constraint at once. FACT: The penalty is irreversible and eliminates the agent whose responsibility, capacity for reform and rights grounded the constraints. Desert may be granted and still cannot be reliably **administered** through a fallible, unequally resourced process; incapacitation fails necessity once secure imprisonment exists; deterrence is contested, and the burden under uncertainty lies with whoever proposes the irreversible penalty. ANALYSIS: *Bachan Singh* (1980) is a **judgment**, Law Commission Report No. 262 (2015) an **advisory report**.

Objection and reply. FACT: **Objection:** so many constraints leave the state unable to punish effectively. ANALYSIS: **Reply:** they do not reduce the capacity to punish the guilty; they reduce the capacity to punish **conveniently** - which is their whole point.

Verdict. ANALYSIS: Punishment is constrained or it is power: corruption tests whether a public wrong needs a visible victim, mass violence whether responsibility survives fragmentation, and capital punishment whether any constraint holds where error is uncorrectable.

Why this earns marks

Answer-writing focus: a three-application stem is scored on whether one thesis is **tested** three times rather than three summaries being offered. Naming the specific pressure each application exerts - on the concept of a public wrong, on attribution, on every constraint at once - supplies the organising principle.

Exam-length execution - 20 marks, about 330 to 400 words: thesis two lines; constraints three lines; corruption four lines; mass violence four lines; capital punishment five lines; objection and reply three lines; verdict two lines.

- **Structure:** thesis -> the constraints -> three applications, each with its distinctive pressure -> objection and reply -> verdict.
- **Doctrine:** the seven conditions of responsible punishment; guilt individual, responsibility collective in form.
- **Evidence:** Arendt with its control; the classified 1980 judgment and 2015 report.
- **Distinction:** punishing the guilty against punishing conveniently.
- **Criticism:** the effectiveness objection, answered by specifying what capacity is actually lost.

How to improve this answer

Make each application's **pressure point** explicit in its opening clause, since that is what prevents the answer from becoming three mini-essays joined by a thesis sentence. If more space is available, add that the three pressures are cumulative rather than parallel: corruption questions what counts as a public wrong, mass violence questions who may be held to answer for one, and capital punishment questions what may be done to whoever is held to answer - which is the same sequence as the three justifying questions.